

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 905

Introduced by Arch, 14.

Read first time January 08, 2026

Committee:

1 A BILL FOR AN ACT relating to state government; to amend sections 2-1814,
2 2-1816, 38-315, 38-317, 39-2108, 49-1499.02, 71-7010, 71-7013,
3 72-813, 72-814, 72-815, 72-816, 72-818, 81-1117, 81-1120.17,
4 81-15,212, 81-15,214, 81-15,215, 81-15,217, 81-15,218, 81-15,221,
5 81-15,224, 81-15,230, 81-15,231, 85-1002, 85-1005, 86-515, 86-522,
6 86-523, 86-572, and 90-203, Reissue Revised Statutes of Nebraska,
7 sections 39-2310, 43-4215, 43-4217, and 66-4,100, Revised Statutes
8 Cumulative Supplement, 2024, and sections 38-167, 38-204, 38-308,
9 38-605, 38-703, 38-904, 38-2120, 38-2213, 38-2214, 38-2216, 38-2306,
10 39-2106, 39-2301.01, 43-4203, 43-4513, 71-814, 71-5310, 71-7107,
11 71-7108, 71-7109, 71-7110, 72-811, 81-1108.41, 81-1430, 81-1431,
12 81-15,210, 81-15,229, 85-1643, and 86-516, Revised Statutes
13 Supplement, 2025; to eliminate the Nebraska Potato Development Act
14 and provisions related to the Nebraska Potato Development Committee,
15 the Nebraska Potato Development Fund, and the Division of Potato
16 Development in the Department of Agriculture; to change and
17 eliminate provisions related to the Climate Assessment Response
18 Committee, the Nebraska Aquaculture Board, the Board of Advanced
19 Practice Registered Nurses, the Board of Alcohol and Drug
20 Counseling, the Board of Examiners for County Highway and City
21 Street Superintendents, the Children's Behavioral Health Task Force,
22 the Foster Care Reimbursement Rate Committee, the Bridge to
23 Independence Advisory Committee, the Natural Gas Fuel Board, the

1 Women's Health Initiative Advisory Council, the Women's Health
2 Initiative Fund, the State Advisory Committee on Substance Abuse
3 Services, the Veterinary Prescription Monitoring Program Task Force,
4 the Advisory Council on Public Water Supply, the Breast and Cervical
5 Cancer Advisory Committee, the Critical Incident Stress Management
6 Council, the Vacant Building and Excess Land Committee, the
7 Governor's Residence Advisory Commission, the State Comprehensive
8 Capital Facilities Planning Committee, the technical panel for the
9 Nebraska Information Technology Commission, the Suggestion Award
10 Board, the human trafficking task force within the Nebraska
11 Commission on Law Enforcement and Criminal Justice, the State
12 Emergency Response Commission, the Private Onsite Wastewater
13 Treatment System Advisory Committee, the National Statuary Hall of
14 the United States Capitol, the Willa Cather National Statuary Hall
15 Cash Fund, the Chief Standing Bear National Statuary Hall Cash Fund,
16 the Nebraska Safety Center Advisory Council, the technical panel for
17 the Nebraska Information Technology Commission, the Rural Broadband
18 Task Force, and the Rural Broadband Task Force Fund; to eliminate
19 provisions regarding a solid waste management study and advisory
20 committee and a private postsecondary career school advisory
21 committee; to eliminate penalties and obsolete provisions; to
22 harmonize provisions; to provide an operative date; to repeal the
23 original sections; to outright repeal sections 2-1802, 2-1804,
24 2-1805, 2-1806, 2-1807, 2-1808, 2-1809, 2-1810, 2-1811, 2-1812,
25 2-4902, 2-5002, 2-5005, 2-5006, 72-2102, 72-2104, 72-2105,
26 81-15,195, 81-15,211, 82-701, 82-702, 82-704, 82-705, and 82-707,
27 Reissue Revised Statutes of Nebraska, sections 39-2305 and 72-2103,
28 Revised Statutes Cumulative Supplement, 2024, and sections 2-1801,
29 2-1803, 2-1826, 2-4901, 2-5001, 2-5003, 38-205, 38-310, 39-2304,
30 43-4001, 43-4216, 66-2001, 71-702, 71-705, 71-706, 71-815,
31 71-2454.01, 71-5311, 71-7012, 72-812, 72-2101, 81-1139.02, 81-1348,

1 81-15,159.01, 81-15,245, 81-15,246, 82-703, 82-706, 85-1008,
2 85-1607, 86-511, 86-521, 86-1101, 86-1102, and 86-1103, Revised
3 Statutes Supplement, 2025; and to declare an emergency.
4 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 2-1814, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 2-1814 For purposes of the Nebraska Potato Inspection Act ~~As used in~~
4 ~~sections 2-1813 to 2-1825, unless the context otherwise requires:~~

5 (1) Department means ~~shall mean~~ the Department of Agriculture;

6 (2) Director means ~~shall mean~~ the Director of Agriculture;

7 ~~(3) Nebraska Potato Development Committee shall mean the advisory~~
8 ~~committee established by section 2-1803;~~

9 (3) (4) Commercial potato growing area means ~~shall mean~~ a geographic
10 area in which potatoes are produced and offered for sale in commercial
11 quantities;

12 (4) (5) Commercial shipment means (a) ~~shall mean~~ any potatoes
13 shipped in commerce or processed and destined for human consumption, ~~and~~
14 (b) noncertified seed potatoes shipped out of the state;

15 (5) (6) Commercial potato acreage means ~~shall mean~~ a potato field of
16 three acres or more; ~~and~~

17 (6) Person means and includes any natural person, firm, partnership,
18 limited liability company, association, or corporation;

19 (7) Potato grower means the actual grower within the State of
20 Nebraska of at least three acres of potatoes during the crop year;

21 (8) Potato shipper means and includes any person engaged in the
22 business of shipping potatoes who, in any calendar year, sells one
23 hundred eighty thousand pounds of potatoes grown in Nebraska, including
24 potato growers who sell one hundred eighty thousand pounds of potatoes
25 not through licensed shippers and any person who utilizes for any purpose
26 in any calendar year one hundred eighty thousand pounds of potatoes grown
27 in Nebraska not purchased from licensed shippers; and

28 (9) (7) Preceding crop year means ~~shall mean~~ the last calendar year
29 for which official acreage statistics have been compiled by the state-
30 federal division of agricultural statistics.

31 **Sec. 2.** Section 2-1816, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 2-1816 Any person, for the purpose of obtaining information relative
3 to the cost of potato inspection and grading services for a designated
4 area, may request in writing that an estimate be prepared by the director
5 of the costs of such a service. The director may ~~consult with the~~
6 ~~Nebraska Potato Development Committee~~ to establish an estimated
7 inspection fee based upon the inspector's salary, mileage and other
8 travel expenses, cost of inspection certificates, and other necessary
9 expenses to cover the inspection service and the administration thereof.

10 To establish compulsory inspection of commercial shipments of
11 potatoes in a designated area, a petition, signed by potato growers
12 representing fifty-one percent or more of the commercial potato acreage
13 of the last preceding crop year, with an estimate of inspection costs
14 attached, may be presented to the director requesting that all commercial
15 shipments of potatoes originating in the designated area be officially
16 inspected and graded by the department at the point of origin or at
17 locations approved by the director. The director shall fix a time and
18 place for hearing on the petition and shall publish notice thereof in a
19 newspaper having general circulation in the area designated in the
20 petition for three consecutive weeks. At the time and place established
21 by such notice, the director or the director's ~~his or her~~ designate shall
22 hold a public hearing upon the petition at which time evidence will be
23 taken in support of or in opposition to the petition. If the evidence
24 reveals that potato growers representing fifty-one percent or more of the
25 commercial potato acreage of the last preceding crop year are in favor of
26 the compulsory program set forth in the petition request, the director
27 shall enter an order establishing compulsory inspection of commercial
28 shipments of potatoes in the area designated in the petition. A petition
29 to terminate compulsory inspection, signed by potato growers representing
30 fifty-one percent or more of the commercial potato acreage of the last
31 preceding crop year, may be filed with the director at any time and such

1 petition shall be set for public hearing in the manner provided in this
2 section aforesaid. If the director finds from the evidence submitted at
3 such hearing to terminate inspection services that the petition to
4 terminate represents fifty-one percent or more of the commercial potato
5 acreage of the last preceding crop year, the director ~~he or she~~ shall
6 enter an order declaring that compulsory potato inspection is terminated.
7 In order to determine the commercial potato acreage of the last preceding
8 crop year, the director shall use the tabulated crop acreage reports of
9 the county assessors, compiled by the state-federal division of
10 agricultural statistics.

11 **Sec. 3.** Section 38-167, Revised Statutes Supplement, 2025, is
12 amended to read:

13 38-167 (1) Boards shall be designated as follows:

14 ~~(a) Prior to July 1, 2026, Board of Advanced Practice Registered~~
15 ~~Nurses;~~

16 ~~(b) Prior to July 1, 2026, Board of Alcohol and Drug Counseling;~~

17 ~~(a) (c) Board of Athletic Training;~~

18 ~~(b) (d) Board of Audiology and Speech-Language Pathology;~~

19 ~~(c) (e) Board of Behavior Analysts;~~

20 ~~(d) (f) Board of Chiropractic;~~

21 ~~(e) (g) Board of Cosmetology, Electrology, Esthetics, Nail~~
22 ~~Technology, and Body Art;~~

23 ~~(f) (h) Board of Dentistry;~~

24 ~~(g) (i) Board of Emergency Medical Services;~~

25 ~~(h) (j) Board of Registered Environmental Health Specialists;~~

26 ~~(i) (k) Board of Funeral Directing and Embalming;~~

27 ~~(j) (l) Board of Hearing Instrument Specialists;~~

28 ~~(k) (m) Board of Massage Therapy;~~

29 ~~(l) (n) Board of Medical Nutrition Therapy;~~

30 ~~(m) (o) Board of Medical Radiography;~~

31 ~~(n) (p) Board of Medicine and Surgery;~~

1 ~~(o)~~ ~~(q)~~ Board of Mental Health Practice;
2 ~~(p)~~ ~~(r)~~ Board of Nursing;
3 ~~(q)~~ ~~(s)~~ Board of Nursing Home Administration;
4 ~~(r)~~ ~~(t)~~ Board of Occupational Therapy Practice;
5 ~~(s)~~ ~~(u)~~ Board of Optometry;
6 ~~(t)~~ ~~(v)~~ Board of Pharmacy;
7 ~~(u)~~ ~~(w)~~ Board of Physical Therapy;
8 ~~(v)~~ ~~(x)~~ Board of Podiatry;
9 ~~(w)~~ ~~(y)~~ Board of Psychology;
10 ~~(x)~~ ~~(z)~~ Board of Respiratory Care Practice; and
11 ~~(y)~~ ~~(aa)~~ Board of Veterinary Medicine and Surgery.

12 (2) Any change made by the Legislature of the names of boards listed
13 in this section shall not change the membership of such boards or affect
14 the validity of any action taken by or the status of any action pending
15 before any of such boards. Any such board newly named by the Legislature
16 shall be the direct and only successor to the board as previously named.

17 **Sec. 4.** Section 38-204, Revised Statutes Supplement, 2025, is
18 amended to read:

19 38-204 Board ~~Prior to July 1, 2026, board means the Board of~~
20 ~~Advanced Practice Registered Nurses. Beginning July 1, 2026, board means~~
21 ~~the Board of Nursing.~~

22 **Sec. 5.** Section 38-308, Revised Statutes Supplement, 2025, is
23 amended to read:

24 38-308 Board ~~Prior to July 1, 2026, board means the Board of Alcohol~~
25 ~~and Drug Counseling. Beginning July 1, 2026, board means the Board of~~
26 ~~Mental Health Practice.~~

27 **Sec. 6.** Section 38-315, Reissue Revised Statutes of Nebraska, is
28 amended to read:

29 38-315 (1)(a) The practical training supervisor for supervised
30 practical training required under section 38-314 shall hold one of the
31 following credentials:

1 (i) Licensure as an alcohol and drug counselor;

2 (ii) If the practical training is acquired outside of Nebraska, a
3 reciprocity level alcohol and drug counselor credential issued by a
4 member jurisdiction of the International Certification and Reciprocity
5 Consortium, Alcohol and Other Drug Abuse, Inc., or its successor; or

6 (iii) Licensure as a physician or psychologist under the Uniform
7 Credentialing Act, or an equivalent credential from another jurisdiction,
8 and sufficient training as determined by the Board of Medicine and
9 Surgery for physicians or the Board of Psychologists for psychologists,
10 in consultation with the Board of Mental Health Practice ~~Alcohol and Drug~~
11 ~~Counseling~~, and adopted and promulgated by the department in rules and
12 regulations.

13 (b) The practical training supervisor shall not be a family member.

14 (c) The credential requirement of this subsection applies to the
15 work setting supervisor and not to a practicum coordinator or instructor
16 of a postsecondary educational institution.

17 (2) The practical training supervisor shall assume responsibility
18 for the performance of the individual in training and shall be onsite at
19 the work setting when core function activities are performed by the
20 individual in training. A minimum of one hour of evaluative face-to-face
21 supervision for each ten hours of core function performance shall be
22 documented. Supervisory methods shall include, as a minimum, individual
23 supervisory sessions, formal case staffings, and conjoint, cotherapy
24 sessions. Supervision shall be directed towards teaching the knowledge
25 and skills of professional alcohol and drug counseling.

26 **Sec. 7.** Section 38-317, Reissue Revised Statutes of Nebraska, is
27 amended to read:

28 38-317 (1)(a) The clinical supervisor for supervised clinical work
29 experience under section 38-316 shall hold one of the following
30 credentials:

31 (i) Licensure as an alcohol and drug counselor;

1 (ii) If the clinical work is acquired outside of Nebraska, a
2 reciprocity level alcohol and drug counselor credential issued by a
3 member jurisdiction of the International Certification and Reciprocity
4 Consortium, Alcohol and Other Drug Abuse, Inc., or its successor;

5 (iii) The highest level alcohol and drug counselor credential issued
6 by a jurisdiction that is not a member of the International Certification
7 and Reciprocity Consortium, Alcohol and Other Drug Abuse, Inc., or its
8 successor if the credential is based on education, experience, and
9 examination that is substantially similar to the license issued in this
10 state as determined by the board; or

11 (iv) Licensure as a physician or psychologist under the Uniform
12 Credentialing Act, or an equivalent credential from another jurisdiction,
13 and sufficient training as determined by the Board of Medicine and
14 Surgery for physicians or the Board of Psychologists for psychologists,
15 in consultation with the Board of Mental Health Practice ~~Alcohol and Drug~~
16 ~~Counseling~~, and adopted and promulgated by the department in rules and
17 regulations.

18 (b) The clinical supervisor shall be formally affiliated with the
19 program or agency in which the work experience is gained.

20 (c) The clinical supervisor shall not be a family member.

21 (2) There shall be one hour of evaluative face-to-face clinical
22 supervision for each forty hours of paid alcohol and drug counseling work
23 experience. The format for supervision shall be either one-on-one or
24 small group. Methods of supervision may include case review and
25 discussion or direct observation of a counselor's clinical work.

26 **Sec. 8.** Section 38-605, Revised Statutes Supplement, 2025, is
27 amended to read:

28 38-605 Board ~~Prior to July 1, 2026, board means the Board of~~
29 ~~Advanced Practice Registered Nurses. Beginning July 1, 2026, board means~~
30 the Board of Nursing.

31 **Sec. 9.** Section 38-703, Revised Statutes Supplement, 2025, is

1 amended to read:

2 38-703 Board Prior to July 1, 2026, board means the Board of
3 Advanced Practice Registered Nurses. Beginning July 1, 2026, board means
4 the Board of Nursing.

5 **Sec. 10.** Section 38-904, Revised Statutes Supplement, 2025, is
6 amended to read:

7 38-904 Board Prior to July 1, 2026, board means the Board of
8 Advanced Practice Registered Nurses. Beginning July 1, 2026, board means
9 the Board of Nursing.

10 **Sec. 11.** Section 38-2120, Revised Statutes Supplement, 2025, is
11 amended to read:

12 38-2120 (1) ~~This subsection applies prior to July 1, 2026. The~~
13 ~~board shall consist of nine professional members and two public members~~
14 ~~appointed pursuant to section 38-158. The members shall meet the~~
15 ~~requirements of sections 38-164 and 38-165. Two professional members~~
16 ~~shall be certified master social workers, two professional members shall~~
17 ~~be certified professional counselors, two professional members shall be~~
18 ~~certified marriage and family therapists, one professional member shall~~
19 ~~be a certified art therapist, and two professional members shall be~~
20 ~~licensed mental health practitioners that do not hold an associated~~
21 ~~certification.~~

22 The (2) ~~Beginning July 1, 2026, the board shall consist of eleven~~
23 ~~professional members and three public members appointed pursuant to~~
24 ~~section 38-158. The members shall meet the requirements of sections~~
25 ~~38-164 and 38-165. Two professional members shall be certified master~~
26 ~~social workers, two professional members shall be certified professional~~
27 ~~counselors, two professional members shall be certified marriage and~~
28 ~~family therapists, one professional member shall be a certified art~~
29 ~~therapist, two professional members shall be licensed mental health~~
30 ~~practitioners that do not hold an associated certification, and two~~
31 ~~professional members shall be licensed alcohol and drug counselors.~~

1 **Sec. 12.** Section 38-2213, Revised Statutes Supplement, 2025, is
2 amended to read:

3 38-2213 ~~(1) Prior to July 1, 2026, the board shall consist of eight~~
4 ~~registered nurse members, two licensed practical nurse members, and two~~
5 ~~public members. The registered nurses on the board shall be from the~~
6 ~~following areas: (a) One practical nurse educator; (b) one associate~~
7 ~~degree or diploma nurse educator; (c) one baccalaureate nurse educator;~~
8 ~~(d) two nursing service administrators; (e) two staff nurses; and (f) one~~
9 ~~advanced practice registered nurse.~~

10 (1) ~~(2)~~ Beginning July 1, 2026, the board shall consist of ten
11 registered nurse members, two licensed practical nurse members, and three
12 public members. The registered nurses on the board shall be from the
13 following areas: (a) One practical nurse educator; (b) one associate
14 degree or diploma nurse educator; (c) one baccalaureate nurse educator;
15 (d) one nursing service administrator; (e) two staff nurses; and (f) four
16 advanced practice registered nurses.

17 (2) ~~(3)~~ The State Board of Health shall attempt to ensure that the
18 membership of the Board of Nursing is representative of acute care, long-
19 term care, and community-based care. A minimum of three and a maximum of
20 five members shall be appointed from each congressional district, and
21 each member shall have been a bona fide resident of the congressional
22 district from which he or she is appointed for a period of at least one
23 year prior to the time of the appointment of such member.

24 **Sec. 13.** Section 38-2214, Revised Statutes Supplement, 2025, is
25 amended to read:

26 38-2214 (1) Each licensed practical nurse educator on the board
27 shall (a) be a registered nurse currently licensed in the state, (b) have
28 graduated with a graduate degree in nursing or a related field of study,
29 (c) have had a minimum of five years' experience in administration,
30 teaching, or consultation in practical nurse education, and (d) be
31 currently employed as a practical nurse educator.

1 (2) Each associate degree or diploma nurse educator on the board and
2 the baccalaureate nurse educator on the board shall (a) be a registered
3 nurse currently licensed in the state, (b) have graduated with a graduate
4 degree in nursing, (c) have had a minimum of five years' experience in
5 administration, teaching, or consultation in nursing education, and (d)
6 be currently employed in the field being represented.

7 (3) Each staff nurse on the board shall (a) be a registered nurse
8 currently licensed in the state, (b) have had a minimum of five years'
9 experience in nursing, and (c) be currently employed as a staff nurse in
10 the provision of patient care services.

11 (4) Each nursing service administrator on the board shall (a) be a
12 registered nurse currently licensed in the state, (b) have had a minimum
13 of five years' experience in nursing service administration, and (c) be
14 currently employed in such field.

15 (5) Each licensed practical nurse member shall (a) have completed at
16 least four years of high school study, (b) be licensed as a licensed
17 practical nurse in this state, (c) have obtained a certificate or diploma
18 from a state-approved practical nursing program, (d) have been actively
19 engaged in practical nursing for at least five years, and (e) be
20 currently employed in the provision of patient care services as a
21 licensed practical nurse in the state.

22 (6) Each public member shall meet the requirements of section
23 38-165.

24 (7)(a) Each advanced practice registered nurse on the board shall
25 (i) have a minimum of five years' experience as an advanced practice
26 registered nurse, (ii) be currently employed as an advanced practice
27 registered nurse, and (iii) be licensed as an advanced practice
28 registered nurse.

29 (b) ~~The Beginning July 1, 2026,~~ the preferred representation of the
30 advanced practice registered nurses on the board includes one certified
31 registered nurse anesthetist, one nurse practitioner, one clinical nurse

1 specialist, and one certified nurse midwife. If such representation is
2 not possible, any vacancy under subdivision ~~(1)(f)~~ ~~(2)(f)~~ of section
3 38-2213 may be filled based on the composition of the applicant pool for
4 the vacant advanced practice registered nurse position on the board.

5 (c) The appointment of advanced practice registered nurses to fill
6 the vacancies as of July 1, 2026, shall be made so that one of the four
7 advanced practice registered nurse members serves until December 1, 2028,
8 one serves until December 1, 2029, one serves until December 1, 2030, and
9 one serves until December 1, 2031, or as close thereto as possible.
10 Subsequent appointments of advanced practice registered nurses shall be
11 for five-year terms as provided in section 38-163.

12 **Sec. 14.** Section 38-2216, Revised Statutes Supplement, 2025, is
13 amended to read:

14 38-2216 In addition to the duties listed in sections 38-126 and
15 38-161, the board shall:

16 (1) Adopt reasonable and uniform standards for nursing practice and
17 nursing education;

18 (2) If requested, issue or decline to issue advisory opinions
19 defining acts which in the opinion of the board are or are not permitted
20 in the practice of nursing. Such opinions shall be considered
21 informational only and are nonbinding. Practice-related information
22 provided by the board to registered nurses or licensed practical nurses
23 licensed under the Nurse Practice Act shall be made available by the
24 board on request to nurses practicing in this state under a license
25 issued by a state that is a party to the Nurse Licensure Compact;

26 (3) Establish rules and regulations for approving and classifying
27 programs preparing nurses, taking into consideration administrative and
28 organizational patterns, the curriculum, students, student services,
29 faculty, and instructional resources and facilities, and provide surveys
30 for each educational program as determined by the board;

31 (4) Approve educational programs which meet the requirements of the

1 Nurse Practice Act;

2 (5) Keep a record of all its proceedings and compile an annual
3 report for distribution;

4 (6) Adopt rules and regulations establishing standards for
5 delegation of nursing activities, including training or experience
6 requirements, competency determination, and nursing supervision;

7 (7) Collect data regarding nursing;

8 (8) Provide consultation and conduct conferences, forums, studies,
9 and research on nursing practice and education;

10 (9) Join organizations that develop and regulate the national
11 nursing licensure examinations and exclusively promote the improvement of
12 the legal standards of the practice of nursing for the protection of the
13 public health, safety, and welfare;

14 (10) Administer the Nurse Licensure Compact. In reporting
15 information to the coordinated licensure information system under Article
16 VII of the compact, the department may disclose personal identifying
17 information about a nurse, including his or her social security number;
18 and

19 ~~(11) Beginning July 1, 2026:~~

20 ~~(11) (a)~~ Establish standards for integrated practice agreements
21 between collaborating physicians and certified nurse midwives;

22 ~~(12) (b)~~ Monitor the scope of practice by certified nurse midwives,
23 certified registered nurse anesthetists, clinical nurse specialists, and
24 nurse practitioners;

25 ~~(13) (c)~~ Recommend disciplinary action relating to licenses of
26 advanced practice registered nurses, certified nurse midwives, certified
27 registered nurse anesthetists, clinical nurse specialists, and nurse
28 practitioners;

29 ~~(14) (d)~~ Engage in other activities not inconsistent with the
30 Advanced Practice Registered Nurse Practice Act, the Certified Nurse
31 Midwifery Practice Act, the Certified Registered Nurse Anesthetist

1 Practice Act, the Clinical Nurse Specialist Practice Act, and the Nurse
2 Practitioner Practice Act; and

3 ~~(15) (e)~~ Adopt rules and regulations to implement the Advanced
4 Practice Registered Nurse Practice Act, the Certified Nurse Midwifery
5 Practice Act, the Certified Registered Nurse Anesthetist Practice Act,
6 the Clinical Nurse Specialist Practice Act, and the Nurse Practitioner
7 Practice Act, for promulgation by the department as provided in section
8 38-126. Such rules and regulations shall also include (a) ~~(i)~~ approved
9 certification organizations and certification programs and (b) ~~(ii)~~
10 professional liability insurance.

11 **Sec. 15.** Section 38-2306, Revised Statutes Supplement, 2025, is
12 amended to read:

13 38-2306 Board ~~Prior to July 1, 2026, board means the Board of~~
14 ~~Advanced Practice Registered Nurses. Beginning July 1, 2026, board means~~
15 ~~the Board of Nursing.~~

16 **Sec. 16.** Section 39-2106, Revised Statutes Supplement, 2025, is
17 amended to read:

18 39-2106 (1) There is hereby established the Board of Public Roads
19 Classifications and Standards which shall consist of eleven members to be
20 appointed by the Governor with the approval of the Legislature. Any
21 member serving on the Board of Examiners of County Highway and City
22 Street Superintendents on June 30, 2026, shall be presumptively eligible
23 to serve on the Board of Public Roads Classifications and Standards
24 without meeting the criteria of subsections (2) through (6) of this
25 section. The board shall assist in developing the functional
26 classification system under sections 39-2101 to 39-2125 and shall -
27 ~~Beginning July 1, 2026, another duty of the board shall be to have sole~~
28 ~~responsibility for overseeing the County Highway and City Street~~
29 ~~Superintendents Act.~~

30 (2) Of the members of such board:

31 (a) Two shall be representatives of the Department of

1 Transportation;

2 (b) Three shall be representatives of the counties. One of such
3 members shall be a county highway superintendent licensed pursuant to the
4 County Highway and City Street Superintendents Act, and two of such
5 members shall be county board members;

6 (c) Three shall be representatives of the municipalities. ~~One Prior~~
7 ~~to July 1, 2026, each of such members shall be a city engineer, village~~
8 ~~engineer, public works director, city manager, city administrator, street~~
9 ~~commissioner, or city street superintendent licensed pursuant to the~~
10 ~~County Highway and City Street Superintendents Act. Beginning July 1,~~
11 ~~2026, one of such members shall be a city street superintendent licensed~~
12 ~~pursuant to the County Highway and City Street Superintendents Act, and~~
13 ~~the remaining representatives of municipalities shall be a city engineer,~~
14 ~~village engineer, public works director, city manager, city~~
15 ~~administrator, street commissioner, or city street superintendent~~
16 ~~licensed pursuant to the County Highway and City Street Superintendents~~
17 ~~Act; and~~

18 (d) Three shall be lay citizens, with one representing each of the
19 three congressional districts of the state.

20 (3) The county members on the board shall represent the various
21 classes of counties, as defined in section 23-1114.01, in the following
22 manner:

23 (a) One shall be a representative from either a Class 1 or Class 2
24 county;

25 (b) One shall be a representative from either a Class 3 or Class 4
26 county; and

27 (c) One shall be a representative from either a Class 5, Class 6, or
28 Class 7 county.

29 (4) The municipal members of the board shall represent
30 municipalities of the following sizes by population, as determined by the
31 most recent federal decennial census or the most recent revised certified

1 count by the United States Bureau of the Census:

2 (a) One shall be a representative from a municipality of less than
3 two thousand five hundred inhabitants;

4 (b) One shall be a representative from a municipality of two
5 thousand five hundred to fifty thousand inhabitants; and

6 (c) One shall be a representative from a municipality of over fifty
7 thousand inhabitants.

8 (5) In making such appointments, the Governor shall consult with the
9 Director-State Engineer and with the appropriate county and municipal
10 officials and may consult with organizations representing such officials
11 or representing counties or municipalities as may be appropriate.

12 (6) At the expiration of the existing term, one member from the
13 county representatives, the municipal representatives, and the lay
14 citizens shall be appointed for a term of two years; and two members from
15 the county representatives, the municipal representatives, and the lay
16 citizens shall be appointed for terms of four years. One representative
17 from the department shall be appointed for a two-year term and the other
18 representative shall be appointed for a four-year term. Thereafter, all
19 such appointments shall be for terms of four years each.

20 (7) If the Legislature is not in session when members of the board
21 are appointed by the Governor, such members shall take office and act as
22 recess appointees until the next meeting of the Legislature.

23 (8) ~~(7)~~ Members of such board shall receive no compensation for
24 their services as such, except that the lay members shall receive the
25 same compensation as members of the State Highway Commission, and all
26 members shall be reimbursed for expenses incurred in the performance of
27 their official duties as provided in sections 81-1174 to 81-1177. All
28 expenses of such board shall be paid by the department.

29 **Sec. 17.** Section 39-2108, Reissue Revised Statutes of Nebraska, is
30 amended to read:

31 39-2108 The ~~All proceedings of the~~ Board of Public Roads

1 Classifications and Standards shall meet at such times and places as
2 necessary to carry out its duties under the County Highway and City
3 Street Superintendents Act and sections 39-2101 to 39-2125. The board
4 shall be subject to the provisions of the Administrative Procedure Act.

5 **Sec. 18.** Section 39-2301.01, Revised Statutes Supplement, 2025, is
6 amended to read:

7 39-2301.01 For purposes of the County Highway and City Street
8 Superintendents Act, unless the context otherwise requires:

9 (1) Board of examiners means the Board of Public Roads
10 Classifications and Standards; ÷

11 ~~(a) Prior to July 1, 2026, the Board of Examiners for County Highway~~
12 ~~and City Street Superintendents; and~~

13 ~~(b) Beginning July 1, 2026, the Board of Public Roads~~
14 ~~Classifications and Standards;~~

15 (2) City street superintendent means a person who engages in the
16 practice of street superintending for an incorporated municipality;

17 (3) County highway superintendent means a person who engages in the
18 practice of highway superintending for a county; and

19 (4) Street or highway superintending means assisting an incorporated
20 municipality or a county in the following:

21 (a) Developing and annually updating long-range plans or programs
22 based on needs and coordinated with adjacent local governmental units;

23 (b) Developing annual programs for design, construction, and
24 maintenance;

25 (c) Developing annual budgets based on programmed projects and
26 activities;

27 (d) Implementing the capital improvements and maintenance activities
28 provided in the approved plans, programs, and budgets; and

29 (e) Managing personnel, contractors, and equipment in support of
30 such planning, programming, budgeting, and implementation operations.

31 **Sec. 19.** Section 39-2310, Revised Statutes Cumulative Supplement,

1 2024, is amended to read:

2 39-2310 All funds received under the County Highway and City Street
3 Superintendents Act shall be remitted to the State Treasurer for credit
4 to the Highway Cash Fund. ~~Expenses of the members of the board of~~
5 ~~examiners as provided in section 39-2304 shall be paid by the Department~~
6 ~~of Transportation from the Highway Cash Fund.~~

7 **Sec. 20.** Section 43-4203, Revised Statutes Supplement, 2025, is
8 amended to read:

9 43-4203 (1) The Nebraska Children's Commission shall create a
10 committee to examine the Office of Juvenile Services and the Juvenile
11 Services Division of the Office of Probation Administration. Such
12 committee shall review the role and effectiveness of out-of-home
13 placements utilized in the juvenile justice system, including the youth
14 rehabilitation and treatment centers, and make recommendations to the
15 commission on the juvenile justice continuum of care, including what
16 populations should be served in out-of-home placements and what treatment
17 services should be provided at the centers in order to appropriately
18 serve those populations. Such committee shall also review how mental and
19 behavioral health services are provided to juveniles in residential
20 placements and the need for such services throughout Nebraska and make
21 recommendations to the commission relating to those systems of care in
22 the juvenile justice system. The committee shall collaborate with the
23 Juvenile Justice Institute at the University of Nebraska at Omaha, the
24 Center for Health Policy at the University of Nebraska Medical Center,
25 the behavioral health regions as established in section 71-807, and state
26 and national juvenile justice experts to develop recommendations. The
27 recommendations shall include a plan to implement a continuum of care in
28 the juvenile justice system to meet the needs of Nebraska families,
29 including specific recommendations for the rehabilitation and treatment
30 model. The recommendations shall be delivered to the commission and
31 electronically to the Judiciary Committee of the Legislature annually by

1 September 1.

2 (2) The commission shall collaborate with juvenile justice
3 specialists of the Office of Probation Administration and county
4 officials with respect to any county-operated practice model
5 participating in the Crossover Youth Program of the Center for Juvenile
6 Justice Reform at Georgetown University.

7 (3) The commission shall analyze case management workforce issues
8 and make recommendations to the Health and Human Services Committee of
9 the Legislature regarding:

10 (a) Salary comparisons with other states and the current pay
11 structure based on job descriptions;

12 (b) Utilization of incentives for persons who work in the area of
13 child welfare;

14 (c) Evidence-based training requirements for persons who work in the
15 area of child welfare and their supervisors; and

16 (d) Collaboration with the University of Nebraska to increase and
17 sustain such workforce.

18 (4) ~~The Foster Care Reimbursement Rate Committee created pursuant to~~
19 ~~section 43-4216, the Nebraska Strengthening Families Act Committee~~
20 ~~created pursuant to section 43-4716 , and the Bridge to Independence~~
21 ~~Advisory Committee created pursuant to section 43-4513 shall be under the~~
22 ~~jurisdiction of the commission. The Foster Care Reimbursement Rate~~
23 ~~Committee and the Bridge to Independence Advisory Committee terminate on~~
24 ~~July 1, 2026, and the commission shall take over their duties pursuant to~~
25 ~~sections 43-4215, 43-4217, and 43-4513.~~

26 (5) The commission shall work with the office of the State Court
27 Administrator, as appropriate, and entities which coordinate facilitated
28 conferencing as described in section 43-247.03.

29 (6) The commission shall work with administrators from each of the
30 service areas designated pursuant to section 81-3116, the teams created
31 pursuant to section 28-728, local foster care review boards, child

1 advocacy centers, the teams created pursuant to the Supreme Court's
2 Through the Eyes of the Child Initiative, community stakeholders, and
3 advocates for child welfare programs and services to establish networks
4 in each of such service areas. Such networks shall permit collaboration
5 to strengthen the continuum of services available to child welfare
6 agencies and to provide resources for children and juveniles outside the
7 child protection system.

8 (7) The commission may organize subcommittees as it deems necessary.
9 Members of the subcommittees may be members of the commission or may be
10 individuals who have knowledge of the subcommittee's subject matter,
11 professional expertise to assist the subcommittee in completing its
12 assigned responsibilities, or the ability to collaborate within the
13 subcommittee and with the commission to carry out the powers and duties
14 of the commission. A subcommittee shall meet as necessary to complete the
15 work delegated by the commission and shall report its findings to the
16 relevant committee within the commission.

17 (8) No member of any committee or subcommittee created pursuant to
18 this section shall have any private financial interest, profit, or
19 benefit from any work of such committee or subcommittee.

20 **Sec. 21.** Section 43-4215, Revised Statutes Cumulative Supplement,
21 2024, is amended to read:

22 43-4215 (1) On or before July 1, 2014, the Division of Children and
23 Family Services of the Department of Health and Human Services shall
24 implement the reimbursement rate recommendations of the Foster Care
25 Reimbursement Rate Committee as reported to the Legislature pursuant to
26 section 43-4212 as such section existed before June 5, 2013.

27 (2) It is the intent of the Legislature to create additional levels
28 of caregiving for youth in foster care and to create an implementation
29 plan for treatment family care services in order to expand the service
30 array for high-acuity youth in the foster care system.

31 (3) The Legislature finds that (a) there is a need for consistency

1 in the implementation of additional tiers of caregiving across the state,
2 (b) additional tiers of caregiving and reimbursement exist in the
3 continuum of foster care services available in Nebraska, however, there
4 is a variation in the rates, implementation and outcomes, (c) the use of
5 rates outside of the established rate structure can create barriers to
6 permanency for children entering adoption and guardianship and prohibits
7 the state from accessing federal foster care funds that would otherwise
8 be available under Title IV-E of the federal Social Security Act, and (d)
9 additional tiers of caregiving should be utilized to support the
10 exceptional caregiving needs of children.

11 (4) The Legislature further finds that (a) additional treatment
12 services are needed to support the behavioral and mental health needs of
13 youth who are at risk of entering, or who are stepping down from,
14 congregate treatment placement, and (b) treatment family care services
15 uses blended funding to support caregivers and prevent placement
16 disruption.

17 (5) ~~The On or before October 1, 2022,~~ the Division of Children and
18 Family Services of the Department of Health and Human Services shall, in
19 collaboration with the Nebraska Children's Commission Foster Care
20 ~~Reimbursement Rate Committee~~, implement additional statewide tiers of
21 foster care reimbursements for specialized caregiving with standardized
22 rates for foster parents and child placing agencies.

23 (6)(a) On or before July 1, 2013, the Division of Children and
24 Family Services of the Department of Health and Human Services shall
25 develop a pilot project as provided in this subsection to implement the
26 standardized level of care assessment tools recommended by the Foster
27 Care Reimbursement Rate Committee as reported to the Legislature pursuant
28 to section 43-4212 as such section existed before June 5, 2013.

29 (b)(i) The pilot project shall comprise two groups: One in an urban
30 area and one in a rural area. The size of each group shall be determined
31 by the division to ensure an accurate estimate of the effectiveness and

1 cost of implementing such tools statewide.

2 (ii) The Nebraska Children's Commission shall review and provide a
3 progress report on the pilot project by October 1, 2013, to the
4 department and electronically to the Health and Human Services Committee
5 of the Legislature; shall provide to the department and electronically to
6 the committee by December 1, 2013, a report including recommendations and
7 any legislation necessary, including appropriations, to adopt the
8 recommendations, regarding the adaptation or continuation of the
9 implementation of a statewide standardized level of care assessment; and
10 shall provide to the department and electronically to the committee by
11 February 1, 2014, a final report and final recommendations of the
12 commission.

13 **Sec. 22.** Section 43-4217, Revised Statutes Cumulative Supplement,
14 2024, is amended to read:

15 43-4217 (1) The Nebraska Children's Commission ~~Foster Care~~
16 ~~Reimbursement Rate Committee created in section 43-4216~~ shall review and
17 make recommendations in the following areas: Foster care reimbursement
18 rates, the statewide standardized level of care assessment, and adoption
19 assistance payments as required by section 43-117. In making
20 recommendations to the Legislature, the commission ~~committee~~ shall use
21 the then-current foster care reimbursement rates as the beginning
22 standard for setting reimbursement rates. The commission ~~committee~~ shall
23 adjust the standard to reflect the reasonable cost of achieving
24 measurable outcomes for all children in foster care in Nebraska. The
25 commission ~~committee~~ shall (a) analyze then-current consumer expenditure
26 data reflecting the costs of caring for a child in Nebraska, (b) identify
27 and account for additional costs specific to children in foster care, and
28 (c) apply a geographic cost-of-living adjustment for Nebraska. The
29 reimbursement rate structure shall comply with funding requirements
30 related to Title IV-E of the federal Social Security Act, as amended, and
31 other federal programs as appropriate to maximize the utilization of

1 federal funds to support foster care.

2 (2) The commission ~~committee~~ shall review the role and effectiveness
3 of and make recommendations on the statewide standardized level of care
4 assessment containing standardized criteria to determine a foster child's
5 placement needs and to identify the appropriate foster care reimbursement
6 rate. The commission ~~committee~~ shall review other states' assessment
7 models and foster care reimbursement rate structures in completing the
8 statewide standardized level of care assessment review and the standard
9 statewide foster care reimbursement rate structure. The commission
10 ~~committee~~ shall ensure the statewide standardized level of care
11 assessment and the standard statewide foster care reimbursement rate
12 structure provide incentives to tie performance in achieving the goals of
13 safety, maintaining family connection, permanency, stability, and well-
14 being to reimbursements received. The commission ~~committee~~ shall review
15 and make recommendations on assistance payments to adoptive parents as
16 required by section 43-117. The commission ~~committee~~ shall make
17 recommendations to ensure that changes in foster care reimbursement rates
18 do not become a disincentive to permanency.

19 (3) The commission ~~Foster Care Reimbursement Rate Committee~~ shall
20 provide electronic reports with its recommendation to the Health and
21 Human Services Committee of the Legislature on July 1, 2016, and every
22 four years thereafter.

23 **Sec. 23.** Section 43-4513, Revised Statutes Supplement, 2025, is
24 amended to read:

25 43-4513 The ~~(1) The Bridge to Independence Advisory Committee is~~
26 ~~created within the Nebraska Children's Commission~~ shall ~~to~~ advise and
27 make recommendations to the Legislature and ~~the Nebraska Children's~~
28 ~~Commission~~ regarding ongoing implementation of the bridge to independence
29 program, extended guardianship assistance described in section 43-4511,
30 and extended adoption assistance described in section 43-4512. The
31 commission ~~Bridge to Independence Advisory Committee terminates on July~~

1 ~~1, 2026, and the Nebraska Children's Commission shall carry out the~~
2 ~~duties under this section. The Bridge to Independence Advisory Committee~~
3 shall provide a written report regarding ongoing implementation,
4 including participation in the bridge to independence program, extended
5 guardianship assistance described in section 43-4511, and extended
6 adoption assistance described in section 43-4512 and early discharge
7 rates and reasons obtained from the department, to the ~~Nebraska~~
8 ~~Children's Commission,~~ the Health and Human Services Committee of the
9 Legislature, the department, and the Governor by September 1 of each
10 year. The report to the Health and Human Services Committee of the
11 Legislature shall be submitted electronically.

12 ~~(2) The members of the Bridge to Independence Advisory Committee~~
13 ~~shall include, but not be limited to, (a) representatives from all three~~
14 ~~branches of government, and the representatives from the legislative and~~
15 ~~judicial branches of government shall be nonvoting, ex officio members,~~
16 ~~(b) no less than three young adults currently or previously in foster~~
17 ~~care, which may be filled on a rotating basis by members of Project~~
18 ~~Everlast or a similar youth support or advocacy group, (c) one or more~~
19 ~~representatives from a child welfare advocacy organization, (d) one or~~
20 ~~more representatives from a child welfare service agency, and (e) one or~~
21 ~~more representatives from an agency providing independent living~~
22 ~~services.~~

23 ~~(3) Members of the committee shall be appointed for terms of two~~
24 ~~years. The Nebraska Children's Commission shall appoint the chairperson~~
25 ~~of the committee and may fill vacancies on the committee as they occur.~~

26 **Sec. 24.** Section 49-1499.02, Reissue Revised Statutes of Nebraska,
27 is amended to read:

28 49-1499.02 (1) An official or employee of the executive branch of
29 state government who would be required to take any action or make any
30 decision in the discharge of his or her official duties that may cause
31 financial benefit or detriment to him or her, a member of his or her

1 immediate family, or a business with which he or she is associated, which
2 is distinguishable from the effects of such action on the public
3 generally or a broad segment of the public, shall take the following
4 actions as soon as he or she is aware of such potential conflict or
5 should reasonably be aware of such potential conflict, whichever is
6 sooner:

7 (a) Prepare a written statement describing the matter requiring
8 action or decision and the nature of the potential conflict; and

9 (b) Deliver a copy of the statement to the commission and to his or
10 her immediate superior, if any, who shall assign the matter to another.
11 If the immediate superior does not assign the matter to another or if
12 there is no immediate superior, the official or employee shall take such
13 action as the commission shall advise or prescribe to remove himself or
14 herself from influence over the action or decision on the matter.

15 (2) This section does not prevent such a person from (a) making or
16 participating in the making of a governmental decision to the extent that
17 the individual's participation is legally required for the action or
18 decision to be made or (b) making or participating in the making of a
19 governmental decision if the potential conflict of interest is based upon
20 a business association and the business association exists only as the
21 result of his or her position on a commodity board. A person acting
22 pursuant to subdivision (a) of this subsection shall report the
23 occurrence to the commission.

24 (3) For purposes of this section, commodity board means only the
25 following:

26 (a) Corn Development, Utilization, and Marketing Board;

27 (b) Nebraska Dairy Industry Development Board;

28 (c) Grain Sorghum Development, Utilization, and Marketing Board;

29 (d) Nebraska Wheat Development, Utilization, and Marketing Board;

30 (e) Dry Bean Commission;

31 ~~(f) Nebraska Potato Development Committee;~~

1 ~~(f)~~ ~~(g)~~ Nebraska Poultry and Egg Development, Utilization, and
2 Marketing Committee; and
3 ~~(g)~~ ~~(h)~~ Dry Pea and Lentil Commission.

4 **Sec. 25.** Section 66-4,100, Revised Statutes Cumulative Supplement,
5 2024, is amended to read:

6 66-4,100 The Highway Cash Fund and the Roads Operations Cash Fund
7 are hereby created. If bonds are issued pursuant to subsection (2) of
8 section 39-2223, the balance of the share of the Highway Trust Fund
9 allocated to the Department of Transportation and deposited into the
10 Highway Restoration and Improvement Bond Fund as provided in subsection
11 (8) of section 39-2215 and the balance of the money deposited in the
12 Highway Restoration and Improvement Bond Fund as provided in section
13 39-2215.01 shall be transferred by the State Treasurer, on or before the
14 last day of each month, to the Highway Cash Fund. If no bonds are issued
15 pursuant to subsection (2) of section 39-2223, the share of the Highway
16 Trust Fund allocated to the Department of Transportation shall be
17 transferred by the State Treasurer on or before the last day of each
18 month to the Highway Cash Fund.

19 The Legislature may direct the State Treasurer to transfer funds
20 from the Highway Cash Fund to the Roads Operations Cash Fund. Both funds
21 shall be expended by the department (1) for acquiring real estate, road
22 materials, equipment, and supplies to be used in the construction,
23 reconstruction, improvement, and maintenance of state highways, (2) for
24 the construction, reconstruction, improvement, and maintenance of state
25 highways, including grading, drainage, structures, surfacing, roadside
26 development, landscaping, and other incidentals necessary for proper
27 completion and protection of state highways as the department shall,
28 after investigation, find and determine shall be for the best interests
29 of the highway system of the state, either independent of or in
30 conjunction with federal-aid money for highway purposes, (3) for the
31 share of the department of the cost of maintenance of state aid bridges,

1 (4) for planning studies in conjunction with federal highway funds for
2 the purpose of analyzing traffic problems and financial conditions and
3 problems relating to state, county, township, municipal, federal, and all
4 other roads in the state and for incidental costs in connection with the
5 federal-aid grade crossing program for roads not on state highways, (5)
6 for tests and research by the department or proportionate costs of
7 membership, tests, and research of highway organizations when
8 participated in by the highway departments of other states, (6) for the
9 payment of expenses and—costs of the Board of Public Roads
10 Classifications and Standards as set forth in the Examiners for County
11 Highway and City Street Superintendents Act and sections 39-2101 to
12 39-2125 as set forth in section 39-2310, (7) for support of the public
13 transportation assistance program established under section 13-1209 and
14 the intercity bus system assistance program established under section
15 13-1213, (8) for purchasing from political or governmental subdivisions
16 or public corporations, pursuant to section 39-1307, any federal-aid
17 transportation funds available to such entities, (9) for costs related to
18 the administration of the Division of Aeronautics of the Department of
19 Transportation as specified in section 3-107, (10) for furnishing the
20 Nebraska Broadband Office with necessary office space, furniture,
21 equipment, and supplies as well as providing administrative and budgetary
22 support, including salaries for professional, technical, and clerical
23 assistants, as provided in section 81-702, and (11) for the County Bridge
24 Match Program.

25 ~~The State Treasurer shall transfer four million dollars from the~~
26 ~~Roads Operations Cash Fund to the Transportation Infrastructure Bank Fund~~
27 ~~on or before June 30, 2024, on such dates and in such amounts as directed~~
28 ~~by the budget administrator of the budget division of the Department of~~
29 ~~Administrative Services. The money shall be used for the County Bridge~~
30 ~~Match Program. The State Treasurer shall transfer four million dollars~~
31 ~~from the Roads Operations Cash Fund to the Transportation Infrastructure~~

1 ~~Bank Fund on or before June 30, 2025, on such dates and in such amounts~~
2 ~~as directed by the budget administrator of the budget division of the~~
3 ~~Department of Administrative Services. The money shall be used for the~~
4 ~~County Bridge Match Program.~~

5 Any money in the Highway Cash Fund and the Roads Operations Cash
6 Fund not needed for current operations of the department shall, as
7 directed by the Director-State Engineer to the State Treasurer, be
8 invested by the state investment officer pursuant to the Nebraska Capital
9 Expansion Act and the Nebraska State Funds Investment Act, subject to
10 approval by the board of each investment. All income received as a result
11 of such investment shall be placed in the Highway Cash Fund.

12 **Sec. 26.** Section 71-814, Revised Statutes Supplement, 2025, is
13 amended to read:

14 71-814 (1) The State Advisory Committee on Mental Health Services is
15 created. Members of the committee shall have a demonstrated interest and
16 commitment and specialized knowledge, experience, or expertise relating
17 to the provision of mental health services in the State of Nebraska. The
18 committee shall consist of twenty-three members appointed by the Governor
19 as follows: (a) One regional governing board member, (b) one regional
20 administrator, (c) twelve consumers of behavioral health services or
21 their family members, (d) two providers of behavioral health services,
22 (e) two representatives from the State Department of Education, including
23 one representative from the Division of Vocational Rehabilitation of the
24 State Department of Education, (f) three representatives from the
25 Department of Health and Human Services representing mental health,
26 social services, and medicaid, (g) one representative from the Nebraska
27 Commission on Law Enforcement and Criminal Justice, and (h) one
28 representative from the Housing Office of the Community and Rural
29 Development Division of the Department of Economic Development.

30 (2) The committee shall be responsible to the division and shall (a)
31 serve as the state's mental health planning council as required by Public

1 Law 102-321, (b) conduct regular meetings, (c) provide advice and
2 assistance to the division relating to the provision of mental health
3 services and ~~, beginning July 1, 2026,~~ substance use disorder services in
4 the State of Nebraska, including, but not limited to, the development,
5 implementation, provision, and funding of organized peer support
6 services, (d) promote the interests of consumers and their families,
7 including, but not limited to, their inclusion and involvement in all
8 aspects of services design, planning, implementation, provision,
9 education, evaluation, and research, (e) provide reports as requested by
10 the division, and (f) engage in such other activities as directed or
11 authorized by the division.

12 ~~(3) Beginning July 1, 2026, the State Advisory Committee on Mental~~
13 ~~Health Services shall also perform the duties of the State Advisory~~
14 ~~Committee on Substance Abuse Services.~~

15 **Sec. 27.** Section 71-5310, Revised Statutes Supplement, 2025, is
16 amended to read:

17 71-5310 (1) The director may authorize variances or exemptions from
18 the drinking water standards issued pursuant to section 71-5302 under
19 conditions and in such manner as deemed necessary and desirable. ~~Prior to~~
20 ~~July 1, 2026, such variances and exemptions shall be subject to the~~
21 ~~approval of the Advisory Council on Public Water Supply.~~ Such variances
22 or exemptions shall be permitted under conditions and in a manner which
23 are not less stringent than the conditions under, and the manner in
24 which, variances and exemptions may be granted under the federal Safe
25 Drinking Water Act.

26 (2) Prior to granting a variance or an exemption, the director shall
27 provide notice, in a newspaper of general circulation serving the area
28 served by the public water system, of the proposed exemption or variance
29 and that interested persons may request a public hearing on the proposed
30 exemption or variance. The director may require the system to provide
31 other appropriate notice necessary to provide adequate notice to persons

1 served by the system.

2 (3) If a public hearing is requested, the director shall set a time
3 and place for the hearing and such hearing shall be held before the
4 department prior to the variance or exemption being issued. Frivolous and
5 insubstantial requests for a hearing may be denied by the director. An
6 exemption or variance shall be conditioned on monitoring, testing,
7 analyzing, or other requirements to insure the protection of the public
8 health. A variance or an exemption granted shall include a schedule of
9 compliance under which the public water system is required to meet each
10 contaminant level or treatment technique requirement for which a variance
11 or an exemption is granted within a reasonable time as specified by the
12 director. ~~Prior to July 1, 2026, the director's determination shall be~~
13 ~~subject to the approval of the Advisory Council on Public Water Supply.~~

14 **Sec. 28.** Section 71-7010, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 71-7010 The Breast and Cervical Cancer Cash Fund is created. The
17 fund shall consist of any money transferred ~~appropriated~~ to it by the
18 Legislature, any money received by the department for the program,
19 including federal and other public and private funds, and funds credited
20 under section 71-7003.01. Money in the fund may be used to reimburse
21 ~~expenses of members of the Breast and Cervical Cancer Advisory Committee,~~
22 expenses of the program for early detection of breast and cervical cancer
23 funded through a grant from the United States Department of Health and
24 Human Services ~~and~~ and funds received under section 71-7003.01. Any money
25 in the fund available for investment shall be invested by the state
26 investment officer pursuant to the Nebraska Capital Expansion Act and the
27 Nebraska State Funds Investment Act.

28 **Sec. 29.** Section 71-7013, Reissue Revised Statutes of Nebraska, is
29 amended to read:

30 71-7013 The State of Nebraska and ~~and~~ the department and its
31 employees ~~and members of the Breast and Cervical Cancer Advisory~~

1 ~~Committee~~ shall not be liable for any damage or injury resulting from (1)
2 a false negative result or a false positive result interpretation or any
3 other act or omission of an interpreting physician with respect to any
4 screening performed pursuant to sections 71-7001.01 and 71-7003.01 ~~to~~
5 ~~71-7012~~ or (2) any act or omission of a screening supplier or person
6 acting on behalf of such supplier with respect to the provisions of such
7 sections.

8 **Sec. 30.** Section 71-7107, Revised Statutes Supplement, 2025, is
9 amended to read:

10 71-7107 (1) The Department of Health and Human Services shall be the
11 lead agency for the program.

12 (2) ~~The~~ Until July 1, 2026, the department shall:

13 ~~(a) Provide office support to program activities;~~

14 ~~(b) Provide necessary equipment for the program and participants;~~

15 ~~(c) Provide staff support to the Critical Incident Stress Management~~
16 ~~Council;~~

17 ~~(d) Adopt and promulgate rules and regulations to implement the~~
18 ~~program;~~

19 ~~(e) Recruit hospital personnel and emergency medical workers to be~~
20 ~~trained as critical incident stress management peers;~~

21 ~~(f) Participate in the training and continuing education of such~~
22 ~~peers and mental health professionals; and~~

23 ~~(g) Appoint a director for the program who shall be an employee of~~
24 ~~the department and shall be the chairperson of the Interagency Management~~
25 ~~Committee.~~

26 ~~(3) On and after July 1, 2026,~~ the department shall:

27 (a) Coordinate program activities and emergency response;

28 (b) Provide necessary equipment for the program and participants;

29 (c) Recruit hospital personnel and emergency medical workers to be
30 trained as critical incident stress management peers;

31 (d) Participate in the training and continuing education of such

1 peers and mental health professionals;

2 (e) Appoint a director for the program who shall be an employee of
3 the department;

4 (f) Specify the organizational and operational goals for the program
5 and provide overall policy direction for the program;

6 (g) Manage planning and budget development for the program;

7 (h) Manage program development and evaluation;

8 (i) Provide a mechanism for quality assurance that may include
9 certification of critical incident stress management team members;

10 (j) Identify critical incident stress management regions; and

11 (k) Provide backup to regional critical incident stress management
12 teams.

13 ~~(3) (4)~~ The department may adopt and promulgate rules and
14 regulations to implement the program.

15 **Sec. 31.** Section 71-7108, Revised Statutes Supplement, 2025, is
16 amended to read:

17 71-7108 (1) The Department of Health and Human Services shall
18 recruit mental health workers for each critical incident stress
19 management region and participate in the training and continuing
20 education activities of critical incident stress management peers and
21 mental health professionals.

22 (2) The Nebraska State Patrol shall receive all initial requests for
23 stress management sessions, coordinate transportation requirements for
24 critical incident stress management team members, recruit members of the
25 law enforcement profession in each region to be trained as critical
26 incident stress management peers, participate in the training and
27 continuing education activities of critical incident stress management
28 peers and mental health professionals, and appoint a member of the patrol
29 to each regional management committee.

30 (3) The State Fire Marshal shall cooperate in providing
31 transportation for critical incident stress management teams, recruit

1 firefighters to be trained as critical incident stress management peers
2 in each critical incident stress management region, participate in the
3 training and continuing education activities of critical incident stress
4 management peers and mental health professionals, and appoint an
5 individual who is employed by the State Fire Marshal to be on each
6 regional management committee.

7 (4) The Nebraska Emergency Management Agency shall promote stress
8 management planning as part of emergency management preparedness, promote
9 preincident education programs to acquaint emergency service personnel
10 with stress management techniques, and participate in the training and
11 continuing education activities of critical incident stress management
12 peers and mental health professionals.

13 ~~(5) Until July 1, 2026, the department, patrol, State Fire Marshal,~~
14 ~~and agency shall participate in the Critical Incident Stress Management~~
15 ~~Council and the Interagency Management Committee.~~

16 **Sec. 32.** Section 71-7109, Revised Statutes Supplement, 2025, is
17 amended to read:

18 71-7109 The statewide clinical director shall be appointed by the
19 ~~Critical Incident Stress Management Council until July 1, 2026, and by~~
20 ~~the Department of Health and Human Services on and after July 1, 2026.~~
21 The statewide clinical director shall supervise and evaluate the
22 professional and peer support team members, including the regional
23 clinical directors, ~~and until July 1, 2026, shall be a member of and~~
24 ~~work with the Interagency Management Committee for such purpose.~~ The
25 statewide clinical director may conduct critical incident stress
26 management training and continuing education activities.

27 **Sec. 33.** Section 71-7110, Revised Statutes Supplement, 2025, is
28 amended to read:

29 71-7110 Each critical incident stress management region shall have a
30 regional management committee composed of representatives of the
31 Department of Health and Human Services, the State Fire Marshal, and the

1 Nebraska State Patrol and a regional clinical director. The regional
2 clinical director shall have a graduate degree in a mental health
3 discipline. The regional management committee shall be responsible for
4 the implementation and coordination of the program in the region
5 according to the specifications ~~developed by the Critical Incident Stress~~
6 ~~Management Council and Interagency Management Committee prior to July 1,~~
7 ~~2026, and developed by the department on and after July 1, 2026.~~ The
8 regional management committee shall develop critical incident stress
9 management teams to facilitate the stress management process.

10 **Sec. 34.** Section 72-811, Revised Statutes Supplement, 2025, is
11 amended to read:

12 72-811 For purposes of sections 72-811 to 72-818:

13 (1) Department means the Department of Administrative Services;

14 ~~Committee means:~~

15 ~~(a) The Vacant Building and Excess Land Committee prior to July 1,~~
16 ~~2026; and~~

17 ~~(b) The Department of Administrative Services beginning July 1,~~
18 ~~2026;~~

19 (2) Excess, referring to land, means (a) unused in whole or in part
20 by any state agency for the purposes for which the land was acquired or
21 received or (b) without current defined plans by any state agency for the
22 use of the land for the agency's mission for the next fiscal year; and

23 (3) Vacant, referring to buildings, means (a) unoccupied, (b) unused
24 in whole or in part by any state agency for the purposes for which the
25 building was designed, intended, or remodeled, or (c) without current
26 defined plans by any state agency for the use of the building for the
27 agency's mission for the next fiscal year.

28 **Sec. 35.** Section 72-813, Reissue Revised Statutes of Nebraska, is
29 amended to read:

30 72-813 (1) Each state agency shall by September 15 of each year
31 submit to the State Building Administrator a list of all state-owned

1 buildings and land for which it is responsible and shall note the ~~current~~
2 ~~and planned~~ uses of each building and parcel of land. The State Building
3 Administrator shall compile the information on state-owned buildings and
4 land and provide it, along with any other information or recommendations
5 he or she may consider relevant to the purposes of sections 72-811 to
6 72-818, to the Director of Administrative Services ~~Vacant Building and~~
7 ~~Excess Land Committee~~ and to the Legislative Fiscal Analyst. The
8 information provided to the Legislative Fiscal Analyst shall be submitted
9 electronically.

10 (2) The State Building Administrator ~~committee~~ shall ~~meet to~~ review
11 the information and consider further action or possible amendments to
12 orders made pursuant to this section. If the administrator ~~committee~~
13 determines that there is reason to believe that any particular state-
14 owned building or piece of land is vacant or excess, the director
15 ~~committee~~ shall review the status of the building or land and ~~by majority~~
16 ~~vote~~ determine whether it should be declared vacant or excess.

17 (3) If the director ~~committee~~ declares a building or land to be
18 vacant or excess, the director ~~it~~ shall order either maintenance of the
19 building or land ~~by the state building division of the Department of~~
20 ~~Administrative Services~~ or the disposal of the building or land through
21 sale, lease, demolition, or otherwise. Any order for disposal of a
22 building may include related lands. In determining the appropriate action
23 to be taken in regard to a building or land, the director ~~committee~~ shall
24 consider the benefits to the state of the alternative possible actions,
25 including cost-effectiveness, other possible future uses of the building
26 or land for state purposes, and the necessity or utility of the building
27 or land for the furtherance of existing or planned state programs.

28 **Sec. 36.** Section 72-814, Reissue Revised Statutes of Nebraska, is
29 amended to read:

30 72-814 When a building or land is declared vacant or excess under
31 section 72-813, ~~all by the committee, the committee shall certify to the~~

1 ~~Director of Administrative Services its determination and order in regard~~
2 ~~to the building or land. All~~ responsibilities for and records of
3 ownership of the building or land and all records of maintenance of the
4 building or land shall be transferred as soon as possible to the
5 department ~~Department of Administrative Services.~~

6 If the department orders ~~order includes~~ the sale, lease, or other
7 disposal of any building or land as an appropriate action, the Director
8 of Administrative Services ~~director~~ may execute any quitclaim deed,
9 lease, or other instrument necessary to sell, lease, or dispose of the
10 building or land. The director may reserve, in the best interest of the
11 state, an easement, license, or other interest in the building or land
12 for the state in such sale, lease, or disposal. The director may also
13 trade the building or land for other property needed by the state. The
14 director may, at the expense of the state agency formerly responsible for
15 the building or land, remove or order the agency to remove any movable
16 property not attached to the building or land.

17 **Sec. 37.** Section 72-815, Reissue Revised Statutes of Nebraska, is
18 amended to read:

19 72-815 (1) The state building division of the department ~~Department~~
20 ~~of Administrative Services~~ shall be responsible for the sale, lease, or
21 other disposal of a building or land, whichever action is ordered under
22 section 72-813 ~~by the committee.~~

23 (2) If a building is to be demolished, section 72-810 shall not
24 apply, but the state building division shall notify the State Historic
25 Preservation Officer of such demolition at least thirty days prior to the
26 beginning of the demolition or disassembly so that the officer may
27 collect any photographic or other evidence he or she may find of historic
28 value.

29 (3)(a) If a building or land is to be sold or leased, the state
30 building division shall cause an appraisal to be made of the building or
31 land. The sale, lease, or other disposal of the building or land shall

1 comply with all relevant statutes pertaining to the sale or lease of
2 surplus state property, except that if the state building division fails
3 to receive an offer from a state agency in which the agency certifies
4 that it (i) intends to use the building for the purposes for which it was
5 designed, intended, or remodeled or to remodel the building for uses
6 which will serve the agency's purposes or (ii) intends to use the land
7 for the purposes for which it was acquired or received, the state
8 building division shall then notify the Department of Economic
9 Development that the building or land is available for sale or lease so
10 that the department may refer to the state building division any
11 potential buyers or lessees of which the department may be aware. The
12 state building division may then sell or lease the building or land by
13 such method as is to the best advantage of the State of Nebraska,
14 including auction, sealed bid, or public sale and, if necessary, by
15 private sale, but in all situations only after notice of the property
16 sale is publicly advertised on at least two separate occasions in the
17 newspaper with the largest circulation in the county where the surplus
18 property is located and not less than thirty days prior to the sale of
19 the property. The state building division may use the services of a real
20 estate broker licensed under the Nebraska Real Estate License Act.
21 Priority shall be given to other political subdivisions of state
22 government, then to persons contracting with the state or political
23 subdivisions of the state who will use the building or land for middle-
24 income or low-income rental housing for at least fifteen years, and
25 finally to referrals from the Department of Economic Development.

26 (b) When a building or land designated for sale is listed in the
27 National Register of Historic Places, the state building division, in its
28 discretion and based on the best interests of the state, may follow the
29 procedure outlined in subdivision (3)(a) of this section or may sell the
30 building or land by any method deemed in the best interests of the state
31 to a not-for-profit community organization that intends to maintain the

1 historic and cultural integrity of the building or land.

2 (c) All sales and leases shall be in the name of the State of
3 Nebraska. The state building division may provide that a deed of sale
4 include restrictions on the building or land to ensure that the use and
5 appearance of the building or land remain compatible with any adjacent
6 state-owned property.

7 (d) Except as otherwise provided in subsection (4) of this section,
8 the proceeds of the sale or lease shall be remitted to the State
9 Treasurer for credit to the Vacant Building and Excess Land Cash Fund
10 unless the state agency formerly responsible for the building or land
11 certifies to the state building division that the building or land was
12 purchased in part or in total from cash, federal, or revolving funds, in
13 which event, after the costs of selling or leasing the building or land
14 are deducted from the proceeds of the sale or lease and such amount is
15 credited to the fund, the remaining proceeds of the sale or lease shall
16 be credited to the cash, federal, or revolving fund in the percentage
17 used in originally purchasing the building or land.

18 (4) Any state-owned military property, including any armories
19 considered surplus property, shall be sold by such method as is to the
20 best advantage of the State of Nebraska, including auction, sealed bid,
21 or public sale, and if necessary, by private sale, but in all situations
22 only after notice of the property sale is publicly advertised on at least
23 two separate occasions in the newspaper with the largest circulation in
24 the county where the surplus property is located and not less than thirty
25 days prior to the sale of the property, and pursuant to section 72-816,
26 all proceeds from the sale of the property, less maintenance expenses
27 pending the sale and selling expenses, but including investment income on
28 the sale proceeds of the property, shall be promptly transferred from the
29 Vacant Building and Excess Land Cash Fund to the General Fund by the
30 State Building Administrator.

31 (5) The state building division shall be responsible for the

1 maintenance of the building or land if maintenance is ordered under
2 section 72-813 by the committee and shall be responsible for maintenance
3 of the building or land pending sale or lease of the building or land.

4 ~~(6) Land at the Hastings Regional Center determined by the committee~~
5 ~~to be excess shall be sold by such method as is to the best advantage of~~
6 ~~the State of Nebraska, including auction, sealed bid, or public sale and,~~
7 ~~if necessary, by private sale. The sale of land shall only occur after~~
8 ~~notice of the sale is publicly advertised on at least two separate~~
9 ~~occasions in the newspaper with the largest circulation in the county~~
10 ~~where the land is located and not less than thirty days prior to the sale~~
11 ~~of the land. The proceeds from the sale of the land, less maintenance~~
12 ~~expenses pending the sale and selling expenses, but including investment~~
13 ~~income on the sale proceeds, shall be promptly transferred from the~~
14 ~~Vacant Building and Excess Land Cash Fund by the State Treasurer as~~
15 ~~follows:~~

16 ~~(a) First, not exceeding five million three hundred seven thousand~~
17 ~~dollars to the General Fund; and~~

18 ~~(b) Second, not exceeding three million dollars of available~~
19 ~~proceeds remaining to the Nebraska Capital Construction Fund.~~

20 **Sec. 38.** Section 72-816, Reissue Revised Statutes of Nebraska, is
21 amended to read:

22 72-816 (1) The Vacant Building and Excess Land Cash Fund is created.
23 The fund shall consist of proceeds credited to the fund pursuant to
24 sections 72-815 and 90-268. Except as provided in sections 90-268 and
25 90-269, the fund shall be used to pay for the maintenance of vacant state
26 buildings and excess state land and for expenses related to the disposal
27 of state buildings and land referred to the department ~~Department of~~
28 ~~Administrative Services by the committee~~ pursuant to sections 72-811 to
29 72-818. The fund shall be administered by the state building division of
30 the department ~~Department of Administrative Services~~. Any money in the
31 fund available for investment shall be invested by the state investment

1 officer pursuant to the Nebraska Capital Expansion Act and the Nebraska
2 State Funds Investment Act.

3 Funds may be transferred from the Vacant Building and Excess Land
4 Cash Fund to the General Fund at the direction of the Legislature.

5 (2) If there are insufficient funds in the fund to enable the
6 division to fully implement the orders ~~of the committee~~ issued pursuant
7 to sections 72-811 to 72-818, the division shall implement them in the
8 order which most efficiently meets the purposes of such sections.

9 (3) Funds appropriated to the Task Force for Building Renewal shall
10 not be used to carry out any of the purposes of such sections (a) unless
11 the building would otherwise qualify for the use of such funds pursuant
12 to the Deferred Building Renewal Act and (b) except for any expenses
13 incurred by the administrator of the Task Force for Building Renewal in
14 fulfilling his or her duties under such sections.

15 **Sec. 39.** Section 72-818, Reissue Revised Statutes of Nebraska, is
16 amended to read:

17 72-818 Except as provided in section 37-330, a state agency shall
18 submit any request for granting a utility easement on state-owned land to
19 the Director of Administrative Services ~~committee~~. ~~The committee may only~~
20 ~~approve utility easements by majority vote.~~ Utility easements may only be
21 granted to political subdivisions or their contractors for utility or
22 construction-related purposes. The director ~~committee~~ shall certify the
23 approval of a utility easement and ~~to the Director of Administrative~~
24 ~~Services who~~ shall execute the instrument necessary to grant the utility
25 easement. The state building division of the department ~~Department of~~
26 ~~Administrative Services~~ shall be responsible for the implementation of
27 easements granted under this section.

28 **Sec. 40.** Section 81-1108.41, Revised Statutes Supplement, 2025, is
29 amended to read:

30 81-1108.41 (1) The division shall cause a state comprehensive
31 capital facilities plan to be developed. The plan shall project the

1 state's facilities needs for a period of six years and shall be based on
2 programmatic projections and input from each state agency. ~~The To aid in~~
3 ~~the development of the plan prior to July 1, 2026, the Governor shall~~
4 ~~appoint a State Comprehensive Capital Facilities Planning Committee with~~
5 ~~representatives from various state agencies, and the committee shall~~
6 ~~develop and adopt comprehensive planning guidelines and a process of~~
7 ~~project prioritization. The committee terminates on July 1, 2026.~~
8 ~~Beginning July 1, 2026,~~ the division shall be responsible for the
9 comprehensive planning guidelines and the process of project
10 prioritization. The state comprehensive capital facilities plan shall be
11 submitted electronically to the Committee on Building Maintenance for
12 review before such plan shall be submitted to the Governor and the
13 Legislative Fiscal Analyst on or before November 15 prior to the
14 beginning of each biennium. The plan submitted to the Legislative Fiscal
15 Analyst shall be submitted electronically. ~~Prior to July 1, 2026, the~~
16 ~~plan shall be based on priorities developed by the State Comprehensive~~
17 ~~Capital Facilities Planning Committee.~~ The University of Nebraska and any
18 Nebraska state college shall not be required to comply with or be subject
19 to the provisions of this section since these agencies are subject to and
20 participate in statewide facilities planning developed by the
21 Coordinating Commission for Postsecondary Education pursuant to the
22 Coordinating Commission for Postsecondary Education Act.

23 (2) An appropriation for drawings and construction may be made only
24 after submission of an acceptable program statement on or before
25 September 15 of the year previous to the initiation of such
26 appropriation. Such program statement shall include, but not be limited
27 to, (a) an assessment of the compatibility of the project with the state
28 comprehensive capital facilities plan and the agency or departmental
29 comprehensive capital facilities plan, (b) the identification of the
30 impact of the project on the space utilization of other facilities under
31 the control of the agency or department, and (c) the identification of

1 the future impact on the agency or departmental programmatic needs,
2 demand for utilities in excess of current capacity, parking needs, street
3 and road needs, and site acquisition needs. Such program statement shall
4 be submitted to the division and the Legislative Fiscal Analyst. The
5 program statement submitted to the Legislative Fiscal Analyst shall be
6 submitted electronically.

7 (3) No contract for the planning, design, or construction of a new
8 facility or major modification or repair of an existing facility provided
9 for by any state appropriation may be initiated unless an acceptable
10 program statement has been approved by the Governor, the agency or
11 department has submitted to the division a certificate from the Committee
12 on Building Maintenance that there is no state-owned property which is
13 adequate or which through cost-effective renovation, as determined by the
14 division, could be made adequate to meet the agency's or department's
15 needs, and the conditions of the contracts are approved in writing by the
16 division, except that the provisions of this section shall not apply to
17 projects when the total design and construction cost of the project is
18 less than the limit established by the division. Such program statements
19 and contracts shall be reviewed by the division.

20 (4) The division shall file a written report on each program
21 statement and contract reviewed with the Governor and the Legislative
22 Fiscal Analyst. The report submitted to the Legislative Fiscal Analyst
23 shall be submitted electronically. This report shall cover the
24 consistency of the project with the state comprehensive capital
25 facilities plan and the agency or departmental comprehensive capital
26 facilities plan. A subsequent review and report upon completion of the
27 planning or design phase of the project shall indicate the compatibility
28 of the project with the agency or departmental comprehensive capital
29 facilities plan, compare the probable cost of the project with accepted
30 cost standards for similar construction projects, and review the
31 relationship of the project to other state agency or departmental capital

1 facilities in the same complex.

2 **Sec. 41.** Section 81-1117, Reissue Revised Statutes of Nebraska, is
3 amended to read:

4 81-1117 (1) As used in this section, unless the context otherwise
5 requires, information management includes, but is not limited to:

6 (a) Mainframe computers, minicomputers, microprocessors, word
7 processors, and desktop computers;

8 (b) Any peripheral device to be used with the equipment listed in
9 subdivision (1)(a) of this section for such purposes as data input and
10 output, data storage, or data communications;

11 (c) Any code or program to control the operation of the equipment or
12 devices listed in subdivision (1)(a) or (1)(b) of this section; and

13 (d) Employment of professional expertise for computer system design,
14 operations, or program development.

15 (2) Subject to review and approval by the Chief Information Officer,
16 the information management services administrator shall have the
17 following powers, duties, and responsibilities:

18 (a) He or she may review the accounting and other records and
19 reporting systems of all divisions within the Department of
20 Administrative Services and within every other department and agency of
21 the state;

22 (b) He or she shall systematically review the potential application
23 of information management to any work performed outside the information
24 management services division or by any department or agency of the state
25 or any subdivision of any department or agency of the state, and if the
26 costs of mechanizing such work will not exceed present costs or if
27 efficiencies may be achieved, he or she may accept responsibility for the
28 performance of such work. He or she may also review computer applications
29 being used to determine if revision or deletion of computer applications
30 would be beneficial. The findings of reviews made pursuant to this
31 subdivision shall be reported to the Governor and the Legislative Fiscal

1 Analyst. The findings submitted to the Legislative Fiscal Analyst shall
2 be submitted electronically;

3 (c) He or she may, with the approval of the Chief Information
4 Officer, make such revisions to internal systems for production of
5 accounting and other reports as may be necessary to permit economical
6 undertaking of work to be performed by the information management
7 services division for any agency or department of the state;

8 (d) He or she shall organize the information management services
9 division to provide system review, system design, feasibility studies,
10 and machine reviews;

11 (e) He or she may review the operations of information management
12 installations as may exist in any department or agency of the state and
13 may cause such operations to be merged with those of the information
14 management services division in the event that a cost analysis shows that
15 economic advantage may be achieved. He or she may permit the
16 establishment of departmental or agency information management operations
17 in any department or agency of the state if his or her analysis of
18 feasibility shows a potential economy or a substantial convenience for
19 the state incident to such separate establishment. No state agency shall
20 hire, purchase, lease, or rent any information management item listed in
21 subsection (1) of this section without the written approval of the
22 information management services administrator. All new computer programs
23 developed or acquired for use with information management equipment of
24 any state agency shall be documented according to standards developed or
25 approved by the information management services administrator;

26 (f) He or she shall prepare a budget in sufficient time in advance
27 of the statutory date for submittal of budget requests by departments and
28 agencies of the state as to permit each department and agency for which
29 services are performed, or are to be performed during the request budget
30 period, to be informed of the cost of maintaining the current fiscal
31 year's production work for inclusion within their respective budget

1 requests;

2 (g) He or she shall provide for a system of charges for services
3 rendered by the information management services division or the Nebraska
4 Information Technology Commission to any other department or agency of
5 the state when these charges are allocable to a particular project
6 carried on by such department or division. Such standard rate charges
7 shall, as nearly as may be practical, reflect the actual costs incurred
8 in the performance of services for such department or agency. Such system
9 of charges shall be annually reviewed by the Legislature's Committee on
10 Appropriations. Rates planned for the coming fiscal year shall be
11 included in the instructions for completion of budget request forms as
12 annually prepared by the Department of Administrative Services budget
13 division. If rate revisions are required during the fiscal year to
14 reflect changes in the information management services division's
15 operating costs, these revisions shall be announced to state agencies at
16 least thirty days prior to their use in billing these agencies for
17 service. Miscellaneous supplies shall be billed to using agencies at
18 actual cost. Equipment used primarily by one agency for special
19 applications shall be billed to that agency at actual cost. In the event
20 of saturation of the information management services division with the
21 resulting need for contractual support to be furnished by another
22 information management installation, agencies shall be billed at actual
23 cost. The charges received by the department for information management
24 services shall be credited to a fund hereby created which shall be known
25 as the Information Management Revolving Fund. Expenditures shall be made
26 from such fund to finance the operations of the information management
27 services division or the Nebraska Information Technology Commission in
28 accordance with appropriations made by the Legislature. Any money in the
29 Information Management Revolving Fund available for investment shall be
30 invested by the state investment officer pursuant to the Nebraska Capital
31 Expansion Act and the Nebraska State Funds Investment Act. Beginning

1 October 1, 2024, any investment earnings from investment of money in the
2 fund shall be credited to the General Fund;

3 (h) He or she may provide information management services and
4 technical assistance to any subdivision of government as provided for
5 under the Interlocal Cooperation Act or the Joint Public Agency Act;

6 (i) He or she shall provide for the centralization of all
7 administrative work, including that of educational institutions, into the
8 information management services division;

9 (j) He or she shall provide definitions of standards and common data
10 elements, coordinate the collection of data, consolidate data files or
11 data banks, and review and approve or disapprove the establishment of
12 separate data banks; and

13 (k) He or she shall provide assistance as requested by the Nebraska
14 Information Technology Commission for purposes of the Information
15 Technology Infrastructure Act ~~to support the technical panel created in~~
16 ~~section 86-521.~~

17 Each member of the Legislature shall receive an electronic copy of
18 the report required by subdivision (2)(b) of this section by making a
19 request for it to the administrator.

20 **Sec. 42.** Section 81-1120.17, Reissue Revised Statutes of Nebraska,
21 is amended to read:

22 81-1120.17 The division of communications shall have the following
23 duties, powers, and responsibilities:

24 (1) To coordinate the purchase, lease, and use of communications
25 services equipment and facilities for state government;

26 (2) To advise departments and agencies of the state and political
27 subdivisions thereof as to systems or methods to be used to meet
28 requirements efficiently and effectively;

29 (3) To provide assistance as requested by the Nebraska Information
30 Technology Commission for purposes of the Information Technology
31 Infrastructure Act ~~to support the technical panel created in section~~

1 ~~86-521~~;

2 (4) To consolidate and integrate radio communications systems and
3 services of state agencies so far as practical and to provide for their
4 joint use by the agencies;

5 (5) To consolidate telephone and telephone-related activities, so
6 far as practical, and to provide for their joint use by the agencies;

7 (6) To assume management responsibility for any consolidated system
8 or service and approve all purchases and contracts for such
9 communications activities;

10 (7) To enter into agreements for the mutual support and use of
11 communications services of the agencies and departments of state
12 government and its political subdivisions;

13 (8) To provide for the rendering of mutual aid between state
14 government and its political subdivisions and to cooperate with other
15 states and the federal government with respect to the organizing of
16 communications in expediting the carrying out of mutual aid in disasters,
17 emergencies, and civil defense emergencies under the Emergency Management
18 Act;

19 (9) To use or acquire communications facilities now owned or
20 operated by any state agency and to compensate such agency when
21 appropriate;

22 (10) To standardize policies and procedures for the use of such
23 services in such a manner that communications systems in the domain of
24 public safety or security not be compromised;

25 (11) To assume responsibility for the maintenance and repair of
26 state-owned communications facilities so far as practical;

27 (12) To coordinate and consolidate maintenance and repair procedures
28 and facilities so far as possible in the light of good business practice
29 and the requirements of the agencies and departments concerned;

30 (13) Subject to the conditions provided in section 81-1120.19, to
31 contract with qualified suppliers and communications common carriers for

1 communications facilities or services, including private-line services;

2 (14) To apply for, receive, coordinate, and hold or, if appropriate,
3 assist agencies in applying for, receiving, or holding such
4 authorizations, licenses, and allocations of channels and frequencies as
5 are necessary to carry out the purposes of sections 81-1120.01 to
6 81-1120.03 and 81-1120.15 to 81-1120.28;

7 (15) To acquire real estate, equipment, and other property as an
8 agency of the state, subject to the provisions of section 81-1120.19;

9 (16) To cooperate with the Nebraska Emergency Management Agency as
10 to its needs for emergency communications services; and

11 (17) To insure that communications facilities are not used for any
12 purpose which is contrary to the policy and intent of sections 81-1120.01
13 to 81-1120.03 and 81-1120.15 to 81-1120.28 or contrary to the laws and
14 agreements under which the facilities are to be utilized.

15 **Sec. 43.** Section 81-1430, Revised Statutes Supplement, 2025, is
16 amended to read:

17 81-1430 ~~(1) A task force is hereby established within the Nebraska~~
18 ~~Commission on Law Enforcement and Criminal Justice for the purposes of~~
19 ~~investigating and studying human trafficking, the methods for advertising~~
20 ~~human trafficking services, and the victimization of individuals coerced~~
21 ~~to participate in human trafficking. The task force terminates July 1,~~
22 ~~2026.~~

23 ~~(2) The task force shall examine the extent to which human~~
24 ~~trafficking is prevalent in this state, the scope of efforts being taken~~
25 ~~to prevent human trafficking from occurring, and the services available~~
26 ~~to victims of human trafficking in this state. The task force shall~~
27 ~~utilize information and research available from the Innocence Lost~~
28 ~~National Initiative. The task force shall research and recommend a model~~
29 ~~of rehabilitative services for victims of human trafficking that includes~~
30 ~~input from the areas of law enforcement, social services, the legal~~
31 ~~profession, the judiciary, mental health, and immigration. The task force~~

1 ~~shall also investigate the limitations upon victims who wish to come~~
2 ~~forward and seek medical attention; investigate the potential to stop~~
3 ~~human trafficking; and investigate the potential to promote recovery, to~~
4 ~~protect families and children who may be profoundly impacted by such~~
5 ~~abuse, and to save lives.~~

6 (1)(a) ~~(3)(a)~~ The Department of Labor shall develop or select
7 informational posters for placement around the state. The posters shall
8 be in English, Spanish, and any other language deemed appropriate by the
9 department. The posters shall include a toll-free telephone number a
10 person may call for assistance, preferably the National Human Trafficking
11 Resource Center Hotline (888)373-7888.

12 (b) Posters shall be placed in rest stops, strip clubs, and casinos.
13 The department shall work with local businesses and nonprofit entities
14 associated with the prevention of human trafficking to voluntarily place
15 additional signs in high schools, postsecondary educational institutions,
16 gas stations, hotels, hospitals, health care clinics, urgent care
17 centers, airports, train stations, bus stations, and other locations
18 around the state deemed appropriate by the department.

19 (c) ~~Prior to July 1, 2026, the department shall work with the task~~
20 ~~force to carry out this subsection.~~

21 (4) ~~The task force shall consist of the following members:~~

22 (a) ~~The Attorney General or his or her designee;~~

23 (b) ~~The executive director of the Nebraska Commission on Law~~
24 ~~Enforcement and Criminal Justice;~~

25 (c) ~~The Superintendent of Law Enforcement and Public Safety or his~~
26 ~~or her designee;~~

27 (d) ~~The Director of Correctional Services or his or her designee;~~

28 (e) ~~The chief of police or director of public safety of a city of~~
29 ~~two hundred thousand inhabitants or more as determined by the most recent~~
30 ~~federal decennial census or the most recent revised certified count by~~
31 ~~the United States Bureau of the Census;~~

1 ~~(f) The chief of police or director of public safety of a city of~~
2 ~~less than two hundred thousand inhabitants as determined by the most~~
3 ~~recent federal decennial census or the most recent revised certified~~
4 ~~count by the United States Bureau of the Census;~~

5 ~~(g) A county sheriff;~~

6 ~~(h) A county attorney;~~

7 ~~(i) A county commissioner;~~

8 ~~(j) A mayor or city manager;~~

9 ~~(k) A person involved with the control or prevention of juvenile~~
10 ~~delinquency;~~

11 ~~(l) A person involved with the control or prevention of child abuse;~~

12 ~~(m) The Commissioner of Education or his or her designee;~~

13 ~~(n) The director of the Commission on Latino-Americans or his or her~~
14 ~~designee; and~~

15 ~~(o) Six members, at least three of whom shall be women, from the~~
16 ~~public at large.~~

17 ~~(5) The Governor shall appoint the members of the task force listed~~
18 ~~in subdivisions (4)(e) through (l) and (o) of this section for terms as~~
19 ~~provided in subsection (6) of this section. The membership of the task~~
20 ~~force shall represent varying geographic areas and large and small~~
21 ~~political subdivisions. One member from the public at large shall be a~~
22 ~~professional representing child welfare, and one member of the public at~~
23 ~~large shall represent juvenile pretrial diversion programs.~~

24 ~~(6) The members of the task force appointed by the Governor shall~~
25 ~~serve six-year terms, except that of the members first appointed, four~~
26 ~~shall serve initial two-year terms, four shall serve initial four-year~~
27 ~~terms, and six shall serve initial six-year terms from January 1 next~~
28 ~~succeeding their appointments. Thereafter, all members shall serve six-~~
29 ~~year terms. A member may be reappointed at the expiration of his or her~~
30 ~~term. Any vacancy occurring otherwise than by expiration of a term shall~~
31 ~~be filled for the balance of the unexpired term in the same manner as the~~

1 ~~original appointment.~~

2 ~~(7) No member shall serve beyond the time when he or she holds the~~
3 ~~office, employment, or status by reason of which he or she was initially~~
4 ~~eligible for appointment. Any member of the task force appointed by the~~
5 ~~Governor may be removed from the task force for cause upon notice and an~~
6 ~~opportunity to be heard at a public hearing. One of the causes for~~
7 ~~removal shall be absence from three regularly scheduled meetings of the~~
8 ~~task force during any six-month period when the member has failed to~~
9 ~~advise the task force in advance of such meeting that he or she will be~~
10 ~~absent and stating a reason therefor.~~

11 ~~(8) The chairperson of the task force shall be designated by the~~
12 ~~Governor to serve at the pleasure of the Governor. The chairperson shall~~
13 ~~be the chief executive officer of the task force but may delegate such of~~
14 ~~his or her duties to other members of the task force as may be authorized~~
15 ~~by the task force.~~

16 ~~(9) Notwithstanding any provision of law, ordinance, or charter~~
17 ~~provision to the contrary, membership on the task force shall not~~
18 ~~disqualify any member from holding any other public office or employment~~
19 ~~or cause the forfeiture thereof.~~

20 ~~(10) The members of the task force shall serve on the task force~~
21 ~~without compensation, but they shall be entitled to receive reimbursement~~
22 ~~for expenses incurred incident to such service as provided in sections~~
23 ~~81-1174 to 81-1177.~~

24 ~~(11) Eleven members of the task force shall constitute a quorum for~~
25 ~~the transaction of any business or the exercise of any power of the task~~
26 ~~force. The task force shall have the power to act by a majority of the~~
27 ~~members present at any meeting at which a quorum is in attendance.~~

28 ~~(12) Every July 1 and December 1 until July 1, 2026, the task force~~
29 ~~shall report electronically to the Clerk of the Legislature the results~~
30 ~~of its investigation and study and its recommendations, if any, together~~
31 ~~with drafts of legislation necessary to carry its recommendations into~~

1 ~~effect by filing the report with the clerk.~~

2 **Sec. 44.** Section 81-1431, Revised Statutes Supplement, 2025, is
3 amended to read:

4 81-1431 ~~(1)~~—It is the intent of the Legislature that law
5 enforcement agencies, prosecutors, public defenders, judges, juvenile
6 detention center staff, and others involved in the juvenile justice
7 system and the criminal justice system and other relevant officials be
8 provided mandatory training regarding issues in human trafficking. Prior
9 to July 1, 2026, the task force established in section 81-1430 shall work
10 with such agencies, persons, and staff to develop a proper curriculum for
11 the training and to determine how the training should be provided. The
12 determination and accompanying legislative recommendations shall be made
13 by December 1, 2012. Such training shall focus on:

14 ~~(1)~~ ~~(a)~~ State and federal law regarding human trafficking;

15 ~~(2)~~ ~~(b)~~ Methods used in identifying victims of human trafficking who
16 are United States citizens and foreign nationals, including preliminary
17 interview techniques and appropriate questioning methods;

18 ~~(3)~~ ~~(c)~~ Methods for prosecuting human traffickers;

19 ~~(4)~~ ~~(d)~~ Methods of increasing effective collaboration with
20 nongovernmental organizations and other relevant social service
21 organizations in the course of investigating and prosecuting a human
22 trafficking case;

23 ~~(5)~~ ~~(e)~~ Methods for protecting the rights of victims of human
24 trafficking, taking into account the need to consider human rights and
25 the special needs of women and minor victims;

26 ~~(6)~~ ~~(f)~~ The necessity of treating victims of human trafficking as
27 crime victims rather than as criminals; and

28 ~~(7)~~ ~~(g)~~ Methods for promoting the safety and well-being of all
29 victims of human trafficking.

30 ~~(2)~~ Prior to July 1, 2026, the task force shall also seek the input
31 and participation of appropriate nongovernmental organizations and other

1 ~~relevant organizations regarding the provision, preparation, and~~
2 ~~presentation of the training called for in this section.~~

3 **Sec. 45.** Section 81-15,210, Revised Statutes Supplement, 2025, is
4 amended to read:

5 81-15,210 ~~(1)~~The director of the Nebraska Emergency Management
6 Agency shall serve as the State Administrator of the Nebraska Emergency
7 Planning and Community Right to Know Act.

8 ~~(2) The State Emergency Response Commission is created and shall be~~
9 ~~a part of the Nebraska Emergency Management Agency for administrative~~
10 ~~purposes. The commission terminates on July 1, 2026. Beginning July 1,~~
11 ~~2026, the duties of the commission under the Nebraska Emergency Planning~~
12 ~~and Community Right to Know Act shall be carried out by the Nebraska~~
13 ~~Emergency Management Agency. The membership of the commission shall~~
14 ~~include the Director of Environment and Energy or his or her designee,~~
15 ~~the Director-State Engineer or his or her designee, the Superintendent of~~
16 ~~Law Enforcement and Public Safety or his or her designee, the State Fire~~
17 ~~Marshal or his or her designee, the director of the Nebraska Emergency~~
18 ~~Management Agency or his or her designee, the chief executive officer of~~
19 ~~the Department of Health and Human Services or his or her designee, two~~
20 ~~elected officials or employees of municipal or county government, and one~~
21 ~~citizen member to represent each of the following interest groups:~~
22 ~~Firefighters, local emergency management, public or community health,~~
23 ~~environmental protection, labor, school district, small business,~~
24 ~~agricultural business, chemical industry, highway transportation, and~~
25 ~~rail transportation. The Governor shall appoint the municipal or county~~
26 ~~government officials or employees and the citizen members with the~~
27 ~~approval of the Legislature. The appointments shall be made to represent~~
28 ~~the three congressional districts as equally as possible.~~

29 ~~(3) The members appointed by the Governor shall be appointed for~~
30 ~~terms of four years, except that of the first citizen members appointed,~~
31 ~~three members shall serve for one-year terms, three members shall serve~~

1 ~~for two-year terms, and two members shall serve for three-year terms, as~~
2 ~~designated at the time of appointment.~~

3 ~~(4) A vacancy on the commission shall exist in the event of the~~
4 ~~death, disability, or resignation of a member. Any member appointed to~~
5 ~~fill a vacancy occurring prior to the expiration of the term for which~~
6 ~~his or her predecessor was appointed shall be appointed by the Governor~~
7 ~~for the remainder of such term.~~

8 **Sec. 46.** Section 81-15,212, Reissue Revised Statutes of Nebraska, is
9 amended to read:

10 81-15,212 (1) The Nebraska Emergency Management Agency ~~commission~~
11 shall:

12 (a) Appoint local emergency planning committees pursuant to section
13 81-15,215; and

14 (b) Supervise and coordinate the activities of the local emergency
15 planning committees.

16 (2) The Nebraska Emergency Management Agency ~~commission~~ shall
17 designate each county or, where appropriate, multiple counties as
18 emergency planning districts in order to facilitate preparation and
19 implementation of emergency plans.

20 **Sec. 47.** Section 81-15,214, Reissue Revised Statutes of Nebraska, is
21 amended to read:

22 81-15,214 (1) There is hereby created the Nebraska Emergency
23 Planning and Community Right to Know Cash Fund. The fund may receive
24 gifts, bequests, grants, fees, or other contributions or donations from
25 public or private entities. The fund shall be used to carry out the
26 purposes of the Nebraska Emergency Planning and Community Right to Know
27 Act, including:

28 (a) The funding of specific projects as approved by the Nebraska
29 Emergency Management Agency ~~commission~~; and

30 (b) The payment of expenses incurred by the Nebraska Emergency
31 Management Agency ~~commission~~ to administer the fund. Payment from the

1 fund for costs of administering the fund shall not exceed fifteen percent
2 of the total receipts of the fund during the fiscal year. The Nebraska
3 Emergency Management Agency commission shall adopt and promulgate rules
4 and regulations governing allocations from the fund and shall publish
5 guidelines regarding allocations from the fund. Any money in the fund
6 available for investment shall be invested by the state investment
7 officer pursuant to the Nebraska Capital Expansion Act and the Nebraska
8 State Funds Investment Act.

9 (2) Entities receiving allocations from the Nebraska Emergency
10 Planning and Community Right to Know Cash Fund shall expend the
11 allocation in a manner expressly approved by the Nebraska Emergency
12 Management Agency commission. If allocations from the fund are used for
13 purposes other than those approved by the Nebraska Emergency Management
14 Agency commission, the Nebraska Emergency Management Agency commission
15 may recover by appropriate legal means any funds spent inconsistent with
16 the terms of the allocation. Any recovered funds shall be deposited in
17 the fund.

18 **Sec. 48.** Section 81-15,215, Reissue Revised Statutes of Nebraska, is
19 amended to read:

20 81-15,215 The Nebraska Emergency Management Agency commission shall
21 appoint the members of each local emergency planning committee for each
22 emergency planning district established after September 13, 1997. Only
23 one local emergency planning committee shall be established in each
24 district. To the extent possible, each committee established prior to,
25 on, or after September 13, 1997, shall include at a minimum a
26 representative from each of the following interest groups: State and
27 local elected officials, public health, local environmental protection,
28 hospitals, firefighters, local emergency management, law enforcement,
29 transportation, broadcast and print media, neighborhood and community
30 organizations, and owners and operators of facilities which are subject
31 to the requirements of the Nebraska Emergency Planning and Community

1 Right to Know Act. The committee members shall be appointed for terms of
2 two years, except that of the initial appointees, approximately one-half
3 of the members shall serve for terms of one year as designated at the
4 time of appointment. A vacancy on a committee shall exist in the event of
5 the death, disability, or resignation of a member. Any member appointed
6 to fill a vacancy occurring prior to the expiration of the term for which
7 his or her predecessor was appointed shall be appointed for the remainder
8 of such term.

9 **Sec. 49.** Section 81-15,217, Reissue Revised Statutes of Nebraska, is
10 amended to read:

11 81-15,217 (1) Each local emergency planning committee shall:

12 (a) Establish rules governing the functioning of the committee
13 consistent with the Open Meetings Act and sections 84-712 to 84-712.09.
14 The rules shall include provisions for public notification of committee
15 activities, public meetings to discuss the emergency plan required under
16 subdivision (c) of this subsection, public comments, response to such
17 comments by the committee, and distribution of the emergency plan;

18 (b) Establish procedures for receiving and processing requests from
19 the public for information required to be provided under the Nebraska
20 Emergency Planning and Community Right to Know Act. The procedures shall
21 include provisions to inform members of the public of the right to bring
22 an action under federal law to enforce the act. The procedures shall
23 include the designation of an official to serve as coordinator for
24 information;

25 (c) Complete preparation of an emergency plan in accordance with the
26 ~~act not later than January 1, 1998, unless a plan for the emergency~~
27 ~~planning district has previously been submitted and approved by the~~
28 ~~commission.~~ The committee shall review and update the plan once a year
29 beginning March 1, 1999, and each March 1 thereafter, or more frequently
30 as changed circumstances in the community or at any facility may require;

31 (d) Evaluate the need for resources necessary to develop, implement,

1 and exercise the emergency plan and make recommendations with respect to
2 additional resources that may be required and the means for providing
3 such additional resources; and

4 (e) Designate a public library in each county within its district as
5 a depository for the emergency plan, deliver the plan to the designated
6 library, and update the plan as necessary.

7 (2) Each local emergency planning committee may receive gifts,
8 bequests, grants, or other contributions or donations from public or
9 private sources to carry out its duties and the purposes of the act,
10 including, but not limited to, administrative costs and reimbursement to
11 committee members for their actual and necessary travel expenses. Any
12 gifts, bequests, grants, or other contributions or donations received
13 from public or private sources shall be accounted for in an annual report
14 to the Nebraska Emergency Management Agency commission. The Nebraska
15 Emergency Management Agency commission shall adopt and promulgate rules
16 and regulations governing the receipt and use of any gifts, bequests,
17 grants, or other contributions or donations from public or private
18 sources.

19 **Sec. 50.** Section 81-15,218, Reissue Revised Statutes of Nebraska, is
20 amended to read:

21 81-15,218 (1) The owner or operator of each facility in which an
22 extremely hazardous substance exceeding threshold planning quantities is
23 present shall notify the Nebraska Emergency Management Agency commission
24 that such facility is subject to the Nebraska Emergency Planning and
25 Community Right to Know Act ~~within sixty days after September 13, 1997,~~
26 ~~unless notification was made prior to September 13, 1997,~~ and shall
27 notify the Nebraska Emergency Management Agency commission and the local
28 emergency planning committee of the emergency planning district in which
29 the facility is located that such facility is subject to the act within
30 sixty days after an extremely hazardous substance first becomes present
31 at such facility in excess of the threshold planning quantity established

1 for such substance. If there is a revision of the definition of extremely
2 hazardous substances and the facility has present a substance included in
3 the revised definition in excess of the threshold planning quantity
4 established for such substance, the owner or operator of the facility
5 shall notify the Nebraska Emergency Management Agency commission and the
6 committee of the district in which the facility is located within sixty
7 days after such revision that such facility is subject to the act.

8 (2) The Nebraska Emergency Management Agency commission shall notify
9 the director ~~and the State Administrator~~ of facilities subject to the
10 act. The notification shall include:

11 (a) Each notification received from a facility under subsection (1)
12 of this section; and

13 (b) Each facility designated by the Nebraska Emergency Management
14 Agency commission under subsection (3) of this section.

15 (3) For purposes of emergency planning, the Nebraska Emergency
16 Management Agency commission may designate additional facilities which
17 are subject to the act if such designation is made after public notice
18 and opportunity for comment. The Nebraska Emergency Management Agency
19 commission shall notify the facility concerned of any designation under
20 this subsection.

21 **Sec. 51.** Section 81-15,221, Reissue Revised Statutes of Nebraska, is
22 amended to read:

23 81-15,221 Each local emergency planning committee shall provide the
24 emergency plan to the governing bodies having jurisdiction in the
25 emergency planning district for review prior to submitting the plan to
26 the Nebraska Emergency Management Agency commission. The Nebraska
27 Emergency Management Agency commission shall review the plan and make
28 recommendations to the committee on revisions to the plan that may be
29 necessary to ensure coordination of the plan with emergency plans of
30 other emergency planning districts. To the maximum extent practicable,
31 such review shall not delay implementation of the plan.

1 **Sec. 52.** Section 81-15,224, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 81-15,224 (1) The owner or operator of any facility which is
4 required to prepare or have available a material safety data sheet for a
5 hazardous chemical meeting threshold quantity requirements under
6 regulations promulgated under Title III shall prepare and submit annually
7 on or before March 1 beginning in 1998 a tier II inventory form on data
8 for the preceding calendar year to:

9 (a) The local emergency planning committee for the emergency
10 planning district in which the facility is located;

11 (b) The commission coordinator for information; and

12 (c) The fire department with jurisdiction over the facility.

13 (2) An owner or operator may meet the requirements of this section
14 with respect to a hazardous chemical which is a mixture by doing one of
15 the following:

16 (a) Providing information on the tier II inventory form on each
17 element or compound in the mixture which is a hazardous chemical. If more
18 than one mixture has the same element or compound, only one listing on
19 the tier II inventory form for the element or compound at the facility is
20 necessary; or

21 (b) Providing information on the tier II inventory form on the
22 mixture itself.

23 (3) A hazardous chemical subject to the requirements of this section
24 is any hazardous chemical for which a material safety data sheet or a
25 list of chemicals is required under section 81-15,223.

26 (4) A tier II inventory form shall provide the following information
27 for each hazardous chemical present at the facility:

28 (a) The chemical name or the common name of the chemical as provided
29 on the material safety data sheet;

30 (b) An estimate in ranges of the maximum amount of the hazardous
31 chemical present at the facility at any time during the preceding

1 calendar year;

2 (c) An estimate in ranges of the average daily amount of the
3 hazardous chemical present at the facility during the preceding calendar
4 year;

5 (d) A brief description of the manner of storage of the hazardous
6 chemical;

7 (e) The location at the facility of the hazardous chemical; and

8 (f) An indication of whether the owner elects to withhold location
9 information of a specific hazardous chemical from disclosure to the
10 public under section 81-15,229.

11 (5) Upon request by the Nebraska Emergency Management Agency
12 ~~commission~~, the director, a committee, or a fire department with
13 jurisdiction over the facility, the owner or operator of a facility shall
14 provide tier II information, as described in subsection (4) of this
15 section, to the person making the request. Any such request shall be with
16 respect to a specific facility.

17 (6) A state or local official acting in his or her official capacity
18 may have access to tier II information by submitting a request to the
19 Nebraska Emergency Management Agency ~~commission~~ or a committee. Upon
20 receipt of a request for tier II information, the agency ~~commission~~ or
21 committee shall request such information from the facility owner or
22 operator and make such information available to the official.

23 (7) Any person may make request to the Nebraska Emergency Management
24 Agency ~~commission~~, the director, or a committee for tier II information
25 relating to the preceding calendar year with respect to a facility. Any
26 such request shall be in writing and shall be with respect to a specific
27 facility.

28 (8) Any tier II information which the Nebraska Emergency Management
29 Agency ~~commission~~, the director, or a committee has in its possession
30 shall be made available to a person making a request under this section
31 in accordance with section 81-15,229. If the agency ~~commission~~, director,

1 or committee does not have the tier II information in its possession,
2 upon a request for the information the agency commission, director, or
3 committee shall request the facility owner or operator for the
4 information with respect to a hazardous chemical which a facility has
5 stored in an amount in excess of ten thousand pounds present at the
6 facility at any time during the preceding calendar year and make such
7 information available in accordance with section 81-15,229 to the person
8 making the request.

9 (9) In the case of tier II information which is not in the
10 possession of the Nebraska Emergency Management Agency commission, the
11 director, or a committee and which is with respect to a hazardous
12 chemical which a facility has stored in an amount less than ten thousand
13 pounds present at the facility at any time during the preceding calendar
14 year, a request from a person must include the general need for the
15 information. The agency commission, director, or committee may request
16 the facility owner or operator for the tier II information on behalf of
17 the person making the request. Upon receipt of any information requested
18 on behalf of such person, the agency commission, director, or committee
19 shall make the information available to the person in accordance with
20 section 81-15,229.

21 (10) The Nebraska Emergency Management Agency commission, the
22 director, or a committee shall respond to a request for tier II
23 information under this section no later than forty-five days after the
24 date of receipt of the request.

25 (11) An owner or operator of a facility which files an inventory
26 form under this section shall, upon request by the fire department with
27 jurisdiction over the facility, allow the fire department to conduct an
28 onsite inspection of the facility and shall provide to the fire
29 department specific location information on hazardous chemicals at the
30 facility.

31 **Sec. 53.** Section 81-15,229, Revised Statutes Supplement, 2025, is

1 amended to read:

2 81-15,229 (1) Each emergency plan, material safety data sheet, list
3 of chemicals, inventory form, toxic chemical release form, and followup
4 emergency notice shall be made available to the general public,
5 consistent with section 322 of Title III, during normal working hours at
6 the location or locations designated by the Department of Water, Energy,
7 and Environment, the Nebraska Emergency Management Agency commission, or
8 a local emergency planning committee, as appropriate. Upon request by an
9 owner or operator of a facility subject to the requirements of section
10 81-15,224, the Department of Water, Energy, and Environment, the Nebraska
11 Emergency Management Agency commission, or the appropriate committee
12 shall withhold from disclosure under this section the location of any
13 specific chemical required by section 81-15,225 to be contained in an
14 inventory form as tier II information.

15 (2) Each local emergency planning committee shall annually publish a
16 notice in local newspapers that the emergency plan, material safety data
17 sheets, and inventory forms have been submitted under this section. The
18 notice shall state that followup emergency notices may subsequently be
19 issued. Such notice shall announce that members of the public who wish to
20 review any such plan, sheet, form, or followup notice may do so at the
21 location designated under subsection (1) of this section.

22 **Sec. 54.** Section 81-15,230, Reissue Revised Statutes of Nebraska, is
23 amended to read:

24 81-15,230 (1) Any state or local government may commence a civil
25 action against an owner or operator of a facility for failure to:

26 (a) Provide notification to the Nebraska Emergency Management Agency
27 ~~commission~~ under subsection (1) of section 81-15,218;

28 (b) Submit a material safety data sheet or a list of chemicals under
29 section 81-15,223;

30 (c) Make available information requested under subsections (3) and
31 (4) of section 81-15,223; and

1 (d) Complete and submit a tier II inventory form under section
2 81-15,224.

3 (2) The Nebraska Emergency Management Agency ~~commission~~, the
4 director, or a local emergency planning committee may commence a civil
5 action against an owner or operator of a facility for failure to provide
6 information under section 81-15,219 or for failure to submit tier II
7 information under subsection (5) of section 81-15,224.

8 (3) The state may commence a civil action against the administrator
9 for failure to provide information to the state under section 322(g) of
10 Title III.

11 **Sec. 55.** Section 81-15,231, Reissue Revised Statutes of Nebraska, is
12 amended to read:

13 81-15,231 (1) Any action under section 81-15,230, except as provided
14 in subsection (2) of this section, against an owner or operator of a
15 facility shall be brought in the district court for the district in which
16 the alleged violation occurred.

17 (2) Any action under subsection (3) of section 81-15,230 against the
18 administrator may be brought in the United States District Court for the
19 District of Columbia.

20 (3) Except as provided in subsection (2) of this section, the
21 district court shall have jurisdiction in actions brought under section
22 81-15,230 against an owner or operator of a facility to enforce the
23 requirement concerned and to impose any civil penalty provided for
24 violation of that requirement. The district court shall have jurisdiction
25 in actions brought under section 81-15,230 against the Nebraska Emergency
26 Management Agency ~~commission~~ and the director to order the agency
27 ~~commission~~ and the director to perform the act or duty concerned.

28 **Sec. 56.** Section 85-1002, Reissue Revised Statutes of Nebraska, is
29 amended to read:

30 85-1002 For purposes of sections 85-1001 to 85-1007 ~~85-1008~~, unless
31 the context otherwise requires, center shall mean the Nebraska Safety

1 Center created under section 85-1003.

2 **Sec. 57.** Section 85-1005, Reissue Revised Statutes of Nebraska, is
3 amended to read:

4 85-1005 (1) The Board of Regents of the University of Nebraska may
5 accept and administer, in accordance with proper financial procedures at
6 the University of Nebraska at Kearney, gifts, grants, tuition, fees, and
7 private funds to assist in the operation of the center.

8 (2) The Board of Regents of the University of Nebraska may request
9 an appropriation from the General Fund to assist in the operation of the
10 center to promote the purposes of sections 85-1001 to 85-1007 ~~85-1008~~.

11 **Sec. 58.** Section 85-1643, Revised Statutes Supplement, 2025, is
12 amended to read:

13 85-1643 (1) The Private Postsecondary Career Schools Cash Fund is
14 created. All fees collected pursuant to the Private Postsecondary Career
15 School Act shall be remitted to the State Treasurer for credit to the
16 fund. The fund shall be used only for the purpose of administering the
17 act, except that transfers may be made from the fund to the Education
18 Future Fund at the direction of the Legislature. No fees shall be subject
19 to refund.

20 (2) Except as provided in subsection (4) of this section, fees
21 collected pursuant to the act shall be the following:

22 (a) Initial application for authorization to operate, two hundred
23 dollars plus twenty dollars per program of study offered;

24 (b) Renewal application for authorization to operate, one hundred
25 dollars plus twenty dollars per program of study offered, except that the
26 board may establish a variable fee schedule based upon the prior school
27 year's gross tuition revenue as provided by the school pursuant to
28 section 85-1656;

29 (c) Approval to operate a branch facility, one hundred dollars;

30 (d) Late submission of application, fifty dollars;

31 (e) Initial agent's permit, fifty dollars;

- 1 (f) Agent's permit renewal, twenty dollars;
- 2 (g) Accreditation or reaccreditation, one hundred dollars;
- 3 (h) Initial authorization to award an associate degree, one hundred
- 4 dollars;
- 5 (i) Significant program change, fifty dollars;
- 6 (j) Change of name or location, twenty-five dollars; and
- 7 (k) Additional new program, one hundred dollars.

8 (3) Fees for out-of-state schools may include, but shall not exceed
9 the following:

10 (a) Certificate of approval to recruit, five hundred dollars
11 annually;

12 (b) Initial agent's permit, one hundred dollars; and

13 (c) Agent's permit renewal, forty dollars.

14 ~~(4)(a) Prior to July 1, 2026, the board shall consult with the~~
15 ~~advisory council established pursuant to section 85-1607 regarding any~~
16 ~~increase in fees under the act.~~ The board shall establish fees sufficient
17 to cover the total cost of administration, except that such fees shall
18 not exceed one hundred ten percent of the previous year's total cost.
19 Such fees shall be set out in the rules and regulations adopted and
20 promulgated by the board.

21 (b) Total cost of administration shall be determined by an annual
22 audit of:

23 (i) Salaries and benefits or portions thereof for those department
24 employees who administer the act;

25 (ii) Operating costs such as rent, utilities, and supplies;

26 (iii) Capital costs such as office equipment, computer hardware, and
27 computer software;

28 (iv) Costs for travel by employees of the department, including car
29 rental, gas, and mileage charges; and

30 (v) Other reasonable and necessary costs as determined by the board.

31 **Sec. 59.** Section 86-515, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 86-515 (1) The Nebraska Information Technology Commission is
3 created. The commission shall consist of (a) one member representing
4 elementary and secondary education, (b) one member representing
5 postsecondary education, (c) the Governor or his or her designee, (d) one
6 member representing communities, and (e) five members representing the
7 general public who have experience in developing strategic plans and
8 making high-level business decisions. Of the members representing the
9 general public, the principal business or occupation of at least one such
10 member shall be agriculture. A member of the Transportation and
11 Telecommunications Committee of the Legislature shall be appointed by the
12 Executive Board of the Legislative Council to serve as an ex officio,
13 nonvoting member of the commission. The Executive Board shall make the
14 initial appointment of such member after January 5, 2011, and shall
15 appoint a member every two years after the initial appointment. At any
16 time that there is not a member of the Educational Service Unit
17 Coordinating Council serving on the Nebraska Information Technology
18 Commission, ~~the technical panel established pursuant to section 86-521,~~
19 or any working groups established pursuant to sections 86-512 to 86-524
20 that establish, coordinate, or prioritize needs for education, the
21 Governor shall appoint to the commission one member who serves on the
22 Educational Service Unit Coordinating Council.

23 (2) The Governor or a designee of the Governor shall serve as
24 chairperson of the commission.

25 (3) The members of the commission other than the legislative member
26 shall be appointed by the Governor with the approval of a majority of the
27 Legislature. Members of the commission shall serve for terms of four
28 years, except that two members initially appointed to represent the
29 general public shall be appointed for a term of two years and any member
30 appointed to represent the Educational Service Unit Coordinating Council
31 shall be appointed for a term of one year. Members shall be limited to

1 two consecutive terms. The Governor or his or her designee shall serve on
2 the commission for his or her term. The legislative member of the
3 commission shall serve until he or she is reappointed or a successor is
4 appointed. Each member shall serve until the appointment and
5 qualification of his or her successor. In case of a vacancy occurring
6 prior to the expiration of the term of a member, the appointment shall be
7 made only for the remainder of the term.

8 (4) Members shall be reimbursed for expenses as provided in sections
9 81-1174 to 81-1177.

10 (5) The commission may employ or designate an executive director to
11 provide administrative and operational support for the commission. The
12 Department of Administrative Services and Nebraska Educational
13 Telecommunications Commission shall assist with administrative and
14 operational support for the Nebraska Information Technology Commission as
15 necessary to carry out its duties.

16 **Sec. 60.** Section 86-516, Revised Statutes Supplement, 2025, is
17 amended to read:

18 86-516 The commission shall:

19 (1) Annually by July 1, adopt policies and procedures used to
20 develop, review, and annually update a statewide technology plan;

21 (2) Create an information technology clearinghouse to identify and
22 share best practices and new developments, as well as identify existing
23 problems and deficiencies;

24 (3) Review and adopt policies to provide incentives for investments
25 in information technology infrastructure services;

26 (4) Determine a broad strategy and objectives for developing and
27 sustaining information technology development in Nebraska, including
28 long-range funding strategies, research and development investment,
29 support and maintenance requirements, and system usage and assessment
30 guidelines;

31 (5) Adopt guidelines regarding project planning and management and

1 administrative and technical review procedures involving state-owned or
2 state-supported technology and infrastructure. Governmental entities,
3 state agencies, and noneducation political subdivisions shall submit all
4 projects which use any combination of general funds, federal funds, or
5 cash funds for information technology purposes to the process established
6 by sections 86-512 to 86-524. The commission may adopt policies that
7 establish the format and minimum requirements for project submissions.
8 The commission may monitor the progress of any such project and may
9 require progress reports;

10 (6) Adopt minimum technical standards, guidelines, and architectures
11 ~~upon recommendation by the technical panel~~. Such standards and guidelines
12 shall not unnecessarily restrict the use of new technologies or prevent
13 commercial competition, including competition with Network Nebraska;

14 (7) Establish ad hoc technical advisory groups to study and make
15 recommendations on specific topics, including workgroups to establish,
16 coordinate, and prioritize needs for education, local communities,
17 intergovernmental data communications, and state agencies;

18 (8) By November 15 of each even-numbered year, make recommendations
19 on technology investments to the Governor and the Legislature, including
20 a prioritized list of projects ~~, reviewed by the technical panel pursuant~~
21 ~~to section 86-524~~. The recommendations submitted to the Legislature shall
22 be submitted electronically;

23 (9) Approve grants from the Community Technology Fund and Government
24 Technology Collaboration Fund;

25 (10) Adopt schedules and procedures for reporting needs, priorities,
26 and recommended projects;

27 (11) Assist the Chief Information Officer in developing and
28 maintaining Network Nebraska pursuant to section 86-5,100; and

29 (12) Determine the format that state agencies, boards, and
30 commissions shall use to report their information technology plans under
31 section 86-524.01. The commission shall include an analysis of such plans

1 in the statewide technology plan. ~~and~~

2 ~~(13) Beginning July 1, 2026, assume the duties of the technical~~
3 ~~panel.~~

4 **Sec. 61.** Section 86-522, Reissue Revised Statutes of Nebraska, is
5 amended to read:

6 86-522 The Community Technology Fund is created. The fund shall be
7 granted to public entities or for the public entity's share of public-
8 private partnerships by the commission. The fund shall be used to provide
9 incentives for collaborative community and regional approaches toward
10 more effective and efficient use of technology to meet the needs of
11 citizens, political subdivisions, and other entities as determined by the
12 commission. ~~Expenditures from the fund shall be approved by the~~
13 ~~commission only after review by the technical panel.~~ The fund shall be
14 administered by the office of Chief Information Officer. Any money in the
15 fund available for investment shall be invested by the state investment
16 officer pursuant to the Nebraska Capital Expansion Act and the Nebraska
17 State Funds Investment Act.

18 **Sec. 62.** Section 86-523, Reissue Revised Statutes of Nebraska, is
19 amended to read:

20 86-523 The Government Technology Collaboration Fund is created. The
21 fund shall be granted by the commission. The fund shall be used to
22 provide incentives for collaborative technology projects and programs by
23 state agencies, boards, and commissions and to assist in meeting the
24 technology needs of small agencies as determined by the commission.
25 ~~Expenditures from the fund shall be approved by the commission only after~~
26 ~~review by the technical panel.~~ The fund shall be administered by the
27 office of Chief Information Officer. Any money in the fund available for
28 investment shall be invested by the state investment officer pursuant to
29 the Nebraska Capital Expansion Act and the Nebraska State Funds
30 Investment Act.

31 **Sec. 63.** Section 86-572, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 86-572 The Geographic Information Systems Council shall:

3 (1) Make recommendations to the Legislature and the Nebraska
4 Information Technology Commission for program initiatives and funding.
5 The recommendations submitted to the Legislature shall be submitted
6 electronically;

7 (2) Establish guidelines and policies for statewide Geographic
8 Information Systems operations and management to include:

9 (a) The acquisition, development, maintenance, quality assurance
10 such as standards, access, ownership, cost recovery, and priorities of
11 databases;

12 (b) The compatibility, acquisition, and communications of hardware
13 and software;

14 (c) The assessment of needs, identification of scope, setting of
15 standards, and determination of an appropriate enforcement mechanism;

16 (d) The fostering of training programs and promoting education and
17 information about Geographic Information Systems; and

18 (e) The promoting of Geographic Information Systems development in
19 the State of Nebraska and providing or coordinating additional support to
20 address Geographic Information Systems issues as such issues arise;

21 (3) Report to, assist, and advise the Chief Information Officer in
22 setting information technology policy; and

23 (4) Provide assistance as requested by the commission ~~and support~~
24 ~~the technical panel created in section 86-521.~~

25 **Sec. 64.** Section 90-203, Reissue Revised Statutes of Nebraska, is
26 amended to read:

27 90-203 (1) For purposes of this section, qualified property means
28 the 43.55 acres that were deemed to be not needed for state purposes
29 pursuant to section 90-202 and were deemed to be excess land by the
30 Vacant Building and Excess Land Committee prior to July 1, 2026.

31 (2) Notwithstanding sections 72-811 to 72-818 or any other provision

1 of law, the Director of Administrative Services shall, within thirty days
2 after April 28, 2017, submit a request to the Legislature and the
3 Governor asking for authorization to convey the qualified property to the
4 Northeast Community College Area as a donation so that the qualified
5 property may be used for the purpose of development of the Northeast
6 Community College Technology Park.

7 (3) Approval of the Governor and the Legislature or, if the
8 Legislature is not in session, the Executive Board of the Legislative
9 Council shall be required to donate the qualified property to the
10 Northeast Community College Area.

11 (4) If the Northeast Community College Area sells the qualified
12 property within ten years after it is donated pursuant to this section,
13 all proceeds of the sale shall be remitted to the State Treasurer for
14 credit to the General Fund.

15 **Sec. 65.** This act becomes operative on July 1, 2026.

16 **Sec. 66.** Original sections 2-1814, 2-1816, 38-315, 38-317, 39-2108,
17 49-1499.02, 71-7010, 71-7013, 72-813, 72-814, 72-815, 72-816, 72-818,
18 81-1117, 81-1120.17, 81-15,212, 81-15,214, 81-15,215, 81-15,217,
19 81-15,218, 81-15,221, 81-15,224, 81-15,230, 81-15,231, 85-1002, 85-1005,
20 86-515, 86-522, 86-523, 86-572, and 90-203, Reissue Revised Statutes of
21 Nebraska, sections 39-2310, 43-4215, 43-4217, and 66-4,100, Revised
22 Statutes Cumulative Supplement, 2024, and sections 38-167, 38-204,
23 38-308, 38-605, 38-703, 38-904, 38-2120, 38-2213, 38-2214, 38-2216,
24 38-2306, 39-2106, 39-2301.01, 43-4203, 43-4513, 71-814, 71-5310, 71-7107,
25 71-7108, 71-7109, 71-7110, 72-811, 81-1108.41, 81-1430, 81-1431,
26 81-15,210, 81-15,229, 85-1643, and 86-516, Revised Statutes Supplement,
27 2025, are repealed.

28 **Sec. 67.** The following sections are outright repealed: Sections
29 2-1802, 2-1804, 2-1805, 2-1806, 2-1807, 2-1808, 2-1809, 2-1810, 2-1811,
30 2-1812, 2-4902, 2-5002, 2-5005, 2-5006, 72-2102, 72-2104, 72-2105,
31 81-15,195, 81-15,211, 82-701, 82-702, 82-704, 82-705, and 82-707, Reissue

1 Revised Statutes of Nebraska, sections 39-2305 and 72-2103, Revised
2 Statutes Cumulative Supplement, 2024, and sections 2-1801, 2-1803,
3 2-1826, 2-4901, 2-5001, 2-5003, 38-205, 38-310, 39-2304, 43-4001,
4 43-4216, 66-2001, 71-702, 71-705, 71-706, 71-815, 71-2454.01, 71-5311,
5 71-7012, 72-812, 72-2101, 81-1139.02, 81-1348, 81-15,159.01, 81-15,245,
6 81-15,246, 82-703, 82-706, 85-1008, 85-1607, 86-511, 86-521, 86-1101,
7 86-1102, and 86-1103, Revised Statutes Supplement, 2025.

8 **Sec. 68.** Since an emergency exists, this act takes effect when
9 passed and approved according to law.